UNITED STATES DISTRICT COURT

SOUTHERN DISTRICT OF CALIFORNIA

UNITED STATES OF AMERICA,	)	
	)	
Plaintiff,	)	Case No. 21-cr-1289-TWR
	)	
VS.	)	San Diego, California
	)	
NAMEER MOHAMMAD ATTA,	)	Tuesday,
	)	September 27, 2022
Defendant.	)	8:31 a.m.
_____	)	

REPORTER'S TRANSCRIPT OF PROCEEDINGS

JURY TRIAL - DAY TWO (Pages 196 - 408)

BEFORE THE HONORABLE TODD W. ROBINSON
UNITED STATES DISTRICT JUDGE

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San Diego, California - Tuesday, September 27, 2022

8:31 a.m.

THE CLERK: Calling Case 21-cr-1289, U.S.A. vs. Nameer Atta, for jury trial.

Counsel.

MR. ROTH: Good morning, Your Honor. Owen Roth along with J'me Forrest and Lina Douglas on behalf of the United States.

THE COURT: Thank you. Good morning.

MS. FORREST: Good morning.

MR. CORTEZ: Good morning, Your Honor. Ezekiel Cortez on behalf of Mr. Atta, who is present in custody, and Ralph Cordova, who keeps me in control.

THE COURT: Okay. Good morning. Thank you.

MR. CORTEZ: Good morning.

THE COURT: This matter is on calendar, and for the record, we are outside the presence of the jury. We've set this matter on calendar this morning for a jury instruction conference.

And in that regard, have the parties received copies of the draft jury instructions last night?

MR. ROTH: Yes, Your Honor.

MR. CORTEZ: Yes, we did.

THE COURT: Okay. I am also in receipt of the government's briefing, filed -- there were two filings. The second one is filed as ECF 104. And I'll address those after

we go through the rest of the jury instructions. And that ultimately pertains to, I believe it was draft instruction No. 10, which is the element of proof with regard to the charge in this case and what the government must prove and what the applicable defenses are to that charge.

So going through the instructions -- give me one second. I'm just going to go through them in sequence and ask if either party has any objection to the draft instructions as we go through them. And many of them were submitted by both parties, so I would anticipate there won't be many objections.

Okay. Instruction No. 1, any objection from the defense?

MR. CORTEZ: No.

THE COURT: Any from the government?

MR. ROTH: No.

THE COURT: Instruction No. 2. Mr. Cortez?

MR. CORTEZ: No objection.

THE COURT: Any objection from the government?

MR. ROTH: No.

THE COURT: Okay. Instruction No. 3. We'll wait and see what Mr. Atta does with respect to his decision to testify. So --

MR. CORTEZ: Yes.

THE COURT: -- any objection as to either one of

those versions, depending on whether or not Mr. Atta testifies?

MR. CORTEZ: No objection.

MR. ROTH: No, Your Honor.

THE COURT: Okay. Instruction No. 4, any objection from the defense?

MR. CORTEZ: None.

THE COURT: Any objection from the government?

MR. ROTH: No, Your Honor.

THE COURT: Instruction No. 5?

MR. CORTEZ: No objection.

MR. ROTH: None, Your Honor.

THE COURT: Okay. Instruction No. 6?

MR. CORTEZ: No objection.

MR. ROTH: None, Your Honor.

THE COURT: Instruction No. 7?

MR. CORTEZ: No objection.

MR. ROTH: No, Your Honor.

THE COURT: Instruction No. 8?

MR. CORTEZ: No objection.

MR. ROTH: No, Your Honor.

THE COURT: Instruction No. 9?

MR. CORTEZ: No objection.

MR. ROTH: No, Your Honor.

THE COURT: Instruction No. 10 we'll hold off on for

the moment.

Instruction No. 11?

MR. CORTEZ: Before we pass it, I have no objection to it, just so the Court will know.

THE COURT: Okay. So draft instruction No. 10, there is no objection by the defense. Any objection by the government?

MR. ROTH: Not as written, Your Honor. I do want to review the briefing and --

THE COURT: Okay. I've got two other versions of this that I think we need to discuss based on the briefing, and, Mr. Cortez, I'm very interested in your thoughts on the government's filing from last night as to the available defenses.

MR. CORTEZ: You might be surprised.

THE COURT: Okay. We'll take a pass on 10 --

MR. CORTEZ: Okay.

THE COURT: -- for the moment.

Instruction No. 11?

MR. CORTEZ: No objection.

THE COURT: So my question was whether or not we need Instruction No. 11? Because the jury will receive the verdict form --

MR. CORTEZ: Correct.

THE COURT: -- and as they work their way through

the form, it would necessarily include a finding of the lesser-included offense. So they would work their way through the form, and if they found that the distribution resulting in death aspect had not been proven, they would, by virtue of working their way through the form, make a finding as to the lesser-included offense.

So with that in mind, do you still request Jury Instruction No. 11, Mr. Cortez?

MR. CORTEZ: I do. And I had noticed the somewhat duplication. The other one -- the verdict form obviously is a jury instruction. So I would ask for that.

THE COURT: Okay.

MR. ROTH: Your Honor, I would join in that. Because in the event the jury was unanimous on the first two elements, I would hate for them to not understand that they can convict on that, rather than fully acquit based on failure to reach a consensus or failure of proof on the third element.

THE COURT: Okay. Very well. 11 is in without objection.

12?

MR. CORTEZ: No objection.

MR. ROTH: None, Your Honor.

THE COURT: Okay. 13?

MR. CORTEZ: No objection.

MR. ROTH: No, Your Honor.

THE COURT: 14?

MR. CORTEZ: No objection.

MR. ROTH: None, Your Honor.

THE COURT: We're doing great.

15?

MR. CORTEZ: No objection.

MR. ROTH: No.

THE COURT: 16?

MR. CORTEZ: No objection.

MR. ROTH: None, Your Honor.

THE COURT: 17?

MR. CORTEZ: No objection.

MR. ROTH: No, Your Honor.

THE COURT: And with respect to the verdict form, the government submitted a proposed verdict form. My only change to that is going to be, instead of having them circle it, I'm going to have a blank and the two options underneath the blank, and then they can fill it in. I just don't want crossing out and, you know, what --

MR. CORTEZ: I prefer the Court's version in this.

THE COURT: Okay. And 18?

MR. CORTEZ: No objection.

MR. ROTH: No, Your Honor.

THE COURT: Okay. So that circles us back around to

Instruction No. 10 and the government's filing ECF 104, which was the briefing that pertains to, Mr. Cortez, your opening and your cross-examination of the two first responders.

What is your response to the government's filing ECF 104?

MR. CORTEZ: It's very straightforward. That is not going to be our defense at all. I cannot tell the Court at this point what our precise defense will be, but showing the government's -- showing the unreliability of the government's gathering of evidence is always at issue for every jury, and that's why I used all those indications. There is more to come.

But I'm not going to be arguing -- I was aware of another case, not the *Rodriguez* case. I think, Counsel, I put it in my brief, but I was aware of cases such as suicide cases, where a person sold drugs to an individual, used the drugs to commit suicide by taking an extreme amount, and the Court found that's not a defense at all because you still have a but-for cause.

I'm keenly aware that the but-for cause here is the issue and our defense will be -- will be honed in at the end of the government's case.

THE COURT: Okay.

MR. CORTEZ: I don't see this as an issue.

THE COURT: Okay. So I have two other Instructions

10. I took a stab at drafting them in response to the government's filing of ECF 104. And I would ask the parties to take a moment to look over those two versions of Instruction No. 10.

And my concern in that regard, Mr. Cortez, I appreciate the fact that that is not going to be your defense that you argue, but that is an issue that was not only raised during opening, but is foremost in the jury's mind, I believe, based on the state of the evidence.

MR. CORTEZ: Let me make it easy for the Court. I have no objection to your addition.

THE COURT: Okay. Which version? I've got two.

MR. CORTEZ: The last sentence in this instruction, "additionally, whether the first responders," I have no objection to that.

MR. ROTH: Your Honor, we would request the other one, which, for the record, the sentence is "Additionally, the level of care administered to C.M.R. by the first responders, whether it was medically appropriate or whether it fell below an ordinary standard of care, is not a relevant consideration as to whether the fentanyl distributed by the defendant is the cause of C.M.R.'s death."

I think that is accurate. I think it's an appropriate level of generality, and I think it addresses the issue.

MR. CORTEZ: That's fine, too. That is not going to be our defense.

THE COURT: That's fine. I just want to accurately state the law to the jury so they have full knowledge.

There was a change to the first sentence in that last paragraph --

MR. CORTEZ: I noticed that.

THE COURT: -- and I want to highlight that to the parties.

MR. CORTEZ: Okay.

THE COURT: Because there was a sentence in there about a contributing factor.

MR. CORTEZ: Contributing factor.

THE COURT: And the law is a but-for --

MR. CORTEZ: Correct.

THE COURT: -- inquiry.

So I did take that out, and I want to make sure that the parties are okay with that.

MR. CORTEZ: I appreciate the Court taking it out, because the case law does not consider contributing factors.

THE COURT: Okay. So no objection to taking that out?

MR. CORTEZ: None.

THE COURT: Okay.

MR. ROTH: One moment, Your Honor?

THE COURT: Sure.

MR. ROTH: Thank you.

(Attorney conference.)

MR. ROTH: We agree, Your Honor. Thank you.

THE COURT: Okay. I also noted, going through the jury instructions, and I appreciate the parties' streamlined presentation of the evidence, I'm assuming that the experts who testified yesterday, they were never formally offered pursuant to Rule 702. There was no objection. I'm assuming the parties were going off of the in-limine rulings.

Is that correct, Mr. Cortez?

MR. CORTEZ: You have a good eye. I was waiting for the end of the government's case.

THE COURT: Okay.

MR. CORTEZ: They were never offered. But they were preliminary in-limine rulings, and we could accept them offering them now.

THE COURT: Okay. So there is no objection to the 702 testimony that was introduced yesterday?

And the reason why I raise that, there is a pattern instruction as to how the jurors should consider expert testimony, but they haven't really been keyed into the expert nature of the testimony. There was one witness that Mr. Roth distinguished between the expert portion of his testimony and

the fact-based portion of his testimony.

MR. CORTEZ: Correct.

THE COURT: Are you requesting an expert testimony, the pattern instruction on how they should consider that evidence?

MR. CORTEZ: I'm not. But if the Court wishes to give it, I have no problem under either form of expertise is widely accepted.

THE COURT: Okay. They are to judge it as any other testimony and give it the weight they feel it deserves, so I believe it's properly covered under the other, because it has not been highlighted for this jury. So if the parties are not requesting it, it's clearly not error not to give it. So I'm happy to abide by the parties' request in that regard.

MR. CORTEZ: Okay. I agree.

THE COURT: Okay.

MR. ROTH: We agree, Your Honor.

And to complete the record, with our apologies for not being more precise, that is what we were doing, going off the in-limine rulings.

With respect to the witness currently on the stand, I actually chose not to qualify him because I'm trying to be mindful of the law on law enforcement witnesses with the dual role, and I didn't want to call attention to him as a, quote, unquote, expert. I just wanted to qualify him for those

limited points, and then, I think the Court saw, pivot hard away from it.

THE COURT: No. I think you were very careful in eliciting the dual-purpose testimony in a very compartmentalized way, and I appreciate that.

MR. CORTEZ: I just have one separate item, if I may.

THE COURT: Yes.

MR. CORTEZ: Each time the government offers evidence, especially yesterday with Agent Logan, I have to say each time, "Based on my prior objections, I have nothing else." I'd like the Court to just consider a running objection to that type of evidence so I don't have to repeat it all the time in front of the jury.

THE COURT: Yes. I will treat all of the previously made objections as reserved regarding any of the exhibits that are introduced into evidence.

MR. CORTEZ: Okay. Thank you.

THE COURT: Okay. That brings me to Exhibits 43 and 44. I have had a chance to review those.

Mr. Cortez, do you wish to be heard with respect to those exhibits? Those are the newspaper articles.

MR. CORTEZ: Right. Again, even going back to law school, I couldn't have a stronger objection to that type of unreliable, argumentative, prejudicial evidence.

THE COURT: Okay. With respect to those articles, my understanding is one was taken from Mr. Atta's phone; is that correct?

MR. ROTH: Yes, Your Honor. And just for the record, Exhibit 43 is a screenshot found in the defendant's phone. So 44 is the article, but redacted so that it only reflects the content of the screenshot at 43 and the date.

The whole point of 44 is to show a date that can be associated with the publication of the article that's in the screenshot. I'm not -- but if the Court is going to allow us to put in 43, and the parties can agree that it was from February of 2019, we don't need 44. Its only probative value is a point in time.

THE COURT: Okay.

MR. ROTH: As to 43, yes, it's on the defendant's phone.

THE COURT: Okay. So with respect to 43, I find that it is relevant, that is, it meets the 401 standard that there is some suggestion or evidence, based on Mr. Atta's phone, that he was aware that the M30 pills contained fentanyl. I mean, that's the nature of the article. I find that it's relevant on that basis. However, the remainder of the article as it pertains to the Sinaloa cartel, the deaths resulting from the use of the M30 fentanyl-laced Percocet, I find that that is excludable properly under Rule 403.

So what I will permit the government to do is elicit testimony regarding what the screenshot contains and it goes to the knowledge of Mr. Atta, that the M30 pills may have been laced with fentanyl; and I believe that that's relevant and admissible.

But as to the exhibit itself, even in redacted format, I think that the probative value is substantially outweighed by the prejudicial effect of the comment that's been made by, I believe it's the sheriff in Arizona, about the scourge of these, and I think we're getting far afield, and I think Mr. Cortez's concern in that regard is well-founded.

So 43 and 44, the physical exhibits, are excluded under Rule 403. The relevant portion, however, is admissible under 401. So the testimony will come in, but the physical exhibits will not.

MR. ROTH: And, Your Honor, the United States will offer that testimony for the nonhearsay purpose of notice to the defendant of the existence of these pills as a possibility in the market and the possibility that they could contain fentanyl.

We do not seek to offer it for its truth. We will not argue from this testimony that the defendant knew there were fentanyl -- there was fentanyl in the pills because he read it in a newspaper article. I think that would be

hearsay.

MR. CORTEZ: Without going back and forth with the same issue, I have extremely strong objections, and that's all I can say.

THE COURT: Okay. What is your objection to the testimony regarding the M30s and the fact that there was an article saying that those are laced with fentanyl, and putting Mr. Atta on notice that the M30s may have been tainted in that fashion?

MR. CORTEZ: I have several objections. The first one is basic evidentiary foundation. No. 1, simply because something is on Mr. Atta's screenshot doesn't establish notice of anything.

No. 2, it doesn't establish the real issues in this case, the direct issues, not the argument about them, that, in fact, he did sell, even Percocets to Mr. Reed. Okay. There is a lot of illusion, and that's why in voir dire, the government concentrated on circumstantial evidence. It's no secret. It's very obvious.

Third, that doesn't show any -- it's not probative of his motive or intent or knowledge that the actual substances he may be selling are, indeed, laced with fentanyl. And he may be acknowledging that. So the third issue is not very conclusive as to what it meant to the defendant, and to introduce that type of evidence, I really

believe is one of those things that you cannot unring.

So to the extent that the government hasn't rested, and I still am fine-tuning defenses, that's all I can say at this point.

THE COURT: Okay. So your objection is noted, Mr. Cortez.

MR. CORTEZ: Thank you.

THE COURT: With respect to the testimony, my expectation is it will be very narrowly tailored, that there was an article found on a screenshot that was found on Mr. Atta's phone, and that the article pertained to the fact that fentanyl-laced M30 pills were in circulation or are in existence, and that will be the extent of the testimony in that regard.

MR. ROTH: Yes, Your Honor.

THE COURT: Okay. With that ruling, Mr. Cortez, do you ask for any limiting instruction when that evidence comes in?

MR. CORTEZ: I don't think a limiting instruction will do any good.

THE COURT: Okay.

MR. CORTEZ: Thank you.

THE COURT: Are there any other matters that we need to discuss before we break and bring the jury in at 9:00 a.m.?

MR. CORTEZ: No.

MR. ROTH: No, Your Honor. Thank you.

THE COURT: Okay.

MR. ROTH: Oh, Your Honor. We would ask the Court to reserve on our ability to use the screenshot in cross if the defendant testifies or if the defense opens the door. That's all.

THE COURT: Yes.

MR. ROTH: Thank you.

THE COURT: Okay. Do either of the parties request an electronic version of the jury instructions, or are you satisfied with the version that you have?

MR. ROTH: We -- if we could have it, that would be great.

MR. CORTEZ: Yes. That always helps.

THE COURT: Okay. I will e-mail it to both parties.

MR. ROTH: Your Honor, if I may, if the Court has its verdict form ready, may we have that in electronic form?

THE COURT: I do not have it ready. My plan was to do it over the lunch break.

MR. ROTH: Sorry. That's fine.

THE COURT: But I will give it to you before closing. If you need an electronic version, I can go do it now.

MR. ROTH: No. That's fine.

THE COURT: Okay. All right. We are in recess until 9:00 a.m. Thank you.

MR. CORTEZ: Thank you.

MR. ROTH: Thank you, Judge.

MS. FORREST: Thank you, Your Honor.

(Recess, 8:49 a.m. to 9:16 a.m.)

THE COURT: Okay. We are back on the record. The jurors are not present. All counsel are present. Mr. Atta is present.

I've been informed that one of our jurors is not here, and Ms. Ortiz tried to call the juror, and that juror did not answer the telephone. So it is Juror No. 2, who is seated in the second seat from the end. It was the last juror out of the courtroom yesterday. And apparently she was having trouble finding parking yesterday.

So because the case is being submitted to the jury today, I'm going to solicit the parties' thoughts in going forward with the alternate transitioning in as our deliberating juror and excusing, if she does show up, Juror No. 2.

So Mr. Cortez, what are your thoughts in that regard?

MR. CORTEZ: May I consult with my team?

THE COURT: Of course.

(Attorney conference.)

MR. CORTEZ: We agree that we should proceed immediately because we don't know what's happening.

THE COURT: Okay. What is the government's position?

MR. ROTH: Your Honor, we take no position.

THE COURT: Okay. So what we will do is this: We will let the jurors remain in their assigned seats. Seat No. 2 will be open, but the understanding will be that the 12 remaining jurors will be our deliberating jurors in this case.

Mr. Cortez, to be clear, you're okay with that course of action; is that correct?

MR. CORTEZ: Absolutely, yes. Thank you.

THE COURT: Okay. And the government takes no position with respect to that; is that correct?

MR. ROTH: Yes, sir.

THE COURT: Okay. What we will do is we'll be in a very brief recess. We'll bring in our remaining 12 jurors, and we'll go forward with the presentation of evidence.

MR. CORTEZ: Thank you.

MR. ROTH: Thank you, Your Honor.

(Recess, 9:19 a.m. to 9:20 a.m.)

(Jury present, 9:21 a.m.)

THE CLERK: Calling case 21-cr-1289, U.S.A. vs.

Nameer Atta for jury trial, day two.

Counsel.

MR. ROTH: Good morning again, Your Honor. Owen Roth, along with J'me Forrest and Lina Douglas, on behalf of the United States.

THE COURT: Okay. Good morning.

MR. CORTEZ: And Ezekiel Cortez on behalf of Mr. Atta. Also present is Ralph Cordova.

THE COURT: Thank you. And good morning.

MR. CORTEZ: Thank you. Good morning.

THE COURT: Ladies and gentlemen, I hope you had a good evening. We are going to resume with the taking of evidence in this case. We have enough jurors to go forward. I know that we were waiting for one of the jurors who apparently is unable to join us this morning. So we will go forward with the taking of evidence.

I wanted to briefly mention a scheduling consideration. When you were here yesterday, the parties and I were estimating that the case would be submitted to you no later than Friday of this week. We have very experienced counsel on both sides of the case, and they have been working very diligently to narrow the issues for your consideration. And as a result of their efforts in this case, it is likely that the case will be submitted to you for your consideration this afternoon.

So for scheduling purposes -- so if you need to call people and let them know -- I just wanted to alert you to that change in the scheduling in this case. Again, once the case is submitted to you for your deliberations, how long and how much you deliberate is a matter entirely up to you. So I can tell you when the case will be submitted to you for your consideration, but as to the remainder, that is entirely within your province.

So with that in mind, sir, I will remind you that you're still under oath. And we'll resume the examination, Mr. Roth.

MR. ROTH: Thank you, Your Honor.

THE WITNESS: Yes, sir.

STEPHEN LOGAN, having been previously duly sworn, testified as follows:

DIRECT EXAMINATION (CONTINUED)

BY MR. ROTH:

Q. Good morning again, Special Agent.

A. Good morning, sir. How are you?

Q. Good. Thank you.

Special Agent, when we left off yesterday afternoon, you were offering testimony about the contents of Christian's phone. Do you recall that?

A. Yes, sir, I do.

Q. And I just want to close with one point. Special Agent,

on the -- in the witness box area, do you see a phone in a bag that is labeled Government's Exhibit 202?

A. Yes, sir, I do.

Q. Special Agent, what is Government's Exhibit 202?

A. Christian Reed's cell phone.

Q. And how do you know that?

A. Because I have reviewed the evidence, and I have also handled this item of evidence several times.

Q. Is the download of Christian's phone that you've offered testimony about, the download from that device?

A. Yes, sir, it is.

MR. ROTH: Your Honor, the government would move to admit Government's Exhibit 202.

THE COURT: Any objection?

MR. CORTEZ: No more objections other than what I've stated.

THE COURT: Very well. 202 is received.

(Government's Exhibit 202 received in evidence.)

MR. ROTH: Thank you, Your Honor.

Q. Now, Special Agent, yesterday, do you recall offering some testimony about communications over Snapchat that you found on Christian's phone?

A. Yes, sir, I do.

Q. Did you follow up with Snapchat, given that you found communications on Christian's phone over that application?

A. Yes, sir, I did. I submitted a federal search warrant to Snapchat for the contents of Christian Reed's Snapchat account.

Q. Okay. And if you would please have a look at Government's 18, 19 and 20.

A. 18, 19 and 20?

Q. And look up when you're ready.

A. Yes, sir.

Q. Do you recognize Government's 18 through 20?

A. Yes, sir, I do.

Q. What are they?

A. They are information derived from the search warrant submitted to Snapchat for Christian Reed's Snapchat.

Q. How do you know that?

A. Because I reviewed the information submitted by Snapchat, and this information was contained in those results.

Q. Are Government's 18 through 20 fair and accurate copies of the information that you received from Snapchat?

A. Yes, sir, they are.

MR. ROTH: Your Honor, we would move to admit Government's Exhibit 18 through 20.

THE COURT: Any objection?

MR. CORTEZ: No.

THE COURT: 18 through 20 are received.

(Government's Exhibits 18, 19 and 20 received in evidence.)

MR. ROTH: Thank you, Your Honor.

If we can please pull up Government's Exhibit 18. Thank you.

Special Agent, what is this?

A. That is the subscriber information for Christian Reed's Snapchat account.

Q. What is the ID?

A. The ID is chreed06.

Q. And have we seen chreed06 in any evidence thus far?

A. Yes, sir, we have.

Q. Where have we seen that?

A. That was recovered from -- we saw that in the evidence that we recovered from messages from Christian Reed's cell phone Snapchat messages.

Q. Okay. And do you see an e-mail address next to the ID?

A. Yes, I do.

Q. What is that e-mail address?

A. Chreed006@gmail.

Q. In your search of Christian Reed's cell phone, did you find communications to and from that e-mail address?

A. Yes, sir, I did.

Q. Did you see a name in the e-mails that was in the

account, as in Dear So and So or To So and So?
A. Yes, sir, I did.
Q. What was the name of the person receiving e-mails at this address on Christian's phone?
A. The names were Chris or Christian.
Q. Okay. And then do you see a column labeled phone number?
A. Yes, sir, I do.
Q. And what is the phone number listed there?
A. 1 (507) 702-1867.
Q. Special Agent, whose phone number is that?
A. Christian Reed's cell phone.

MR. ROTH: If we can please go to Government's 19.

THE COURT: Mr. Roth, I believe the witness misstated the phone number, just so the record is clear.

Q. BY MR. ROTH: Okay. Special Agent, would you mind just rereading carefully the phone number. If we can bring 18 back up.
A. 1 (507) --
Q. I think it might be 570.
A. I'm sorry. 570. I apologize. 1 (570) 702-1867.
Q. Okay.
A. Excuse me.
Q. That's quite all right.

Is that Christian's phone number?

A. Yes, sir, it is.
Q. How do you know that's Christian's phone number?
A. Because I reviewed his cell phone and that number was present.
Q. Okay. And while the numbers are small on the screen, you're confident that's it?
A. That is it, yes, sir.
Q. Okay. Thank you. If we can please go to Government's Exhibit 19 and please pull that up.
Special Agent, what is Government's Exhibit 19?
A. That is the friends list from Christian Reed's Snapchat account.
Q. Do you have an understanding of what a friends list is?
A. Yes, sir, I do.
Q. What is it?
A. A friends list is someone that you have some type of contact with over the social media account.
Q. Does it work the same as Facebook Friend, for instance?
A. Yes, sir. Similar in nature, yes.
MR. ROTH: If we can please go to -- and for the record, Your Honor, Government's Exhibit 19 is one, two, three, four, five, six pages long.
Q. Special Agent, if we could please bring up Page 5 of

this exhibit. And, Special Agent, as you look at Page 5 of Government's 19, do any particular names on the friends list jump out to you?

A. Yes, sir, they do.

Q. Which one is that?

A. About a third of the way down, one of the friends on Christian Reed's friend list is nameeratta3324.

Q. What do you infer from the fact that this account is on the friends list?

MR. CORTEZ: Objection. Speculation.

THE COURT: Overruled.

THE WITNESS: That Christian Reed and Nameer Atta were Snapchat friends.

MR. ROTH: If we can turn to Government's Exhibit 20.

Q. Special Agent, what is Government's Exhibit 20?

A. I'm sorry. I flipped a little too far.

That is information provided by Snapchat from Christian Reed's Snapchat account.

Q. Are these communications?

A. Yes, sir, they are.

Q. And are they communications between chreed06 and nameeratta3324?

A. Yes, sir, they are.

Q. Special Agent, have you had a chance to review

Government's Exhibit 20 in its entirety?
A. Yes, sir, I have.
Q. How does Government's Exhibit 20, which comes from Christian's Snapchat account, compare to Government's Exhibits 14 and 15, which came from Christian's phone?
A. They are identical.
Q. Thank you. We can take down Government's Exhibit 20. Thank you.
Special Agent, in addition to gathering evidence from the phone and from the Snapchat account, did you find any other relevant evidence concerning Christian?
A. Yes, sir, I did.
Q. What else did you find?
A. We found a Venmo account on Christian's phone.
Q. Do you know what Venmo is?
A. Yes, sir, I do.
Q. What is it?
A. It is a money-transfer application for mobile devices.
Q. Okay. Did you obtain any evidence from that phone?
A. Yes, sir, I did.
Q. What did you get?
A. I got subscriber information and transaction history for Christian Reed's Venmo account.
Q. Okay. Special Agent, I believe in the binder in front of you, there should be, behind Government's 22, a CD

contained inside of a slip. Do you have that?

A. No, sir, I do not.

MR. ROTH: If you can just give me one second.

I'm sorry. I misidentified the record, Your Honor. Government's 25, so just flip to the back.

THE WITNESS: Yes, sir, I have it.

Q. BY MR. ROTH: Okay. What is at Government's Exhibit 205?

A. It is a disc containing Christian Reed's and Nameer Atta's Venmo records.

MR. ROTH: Okay. So we're going to -- Your Honor, just to -- we're going to lay a foundation for both right now.

THE COURT: Okay.

Q. BY MR. ROTH: In Government's Exhibit 205 -- first of all, did you obtain Venmo -- records from Venmo for both Christian Reed and for the defendant?

A. Yes, sir, I did.

Q. And did you receive records back?

A. Yes, sir, I did.

Q. Okay. And was it your testimony that those two sets of records are on the CD at Government's Exhibit 205?

A. Yes, sir, that's correct.

Q. How do you know Government's Exhibit 205 contains those two sets of Venmo records?

A. Because I reviewed the disc, and then once I reviewed and saw both -- that the disc contained both records. Once I was done reviewing the disc, I signed my name to the disc.

Q. And do you see and recognize your signature on the disc there?

A. Yes, sir, I do.

Q. Are the complete Venmo records for Christian Reed and the defendant on that CD fair and accurate copies of the records you obtained from Venmo?

A. Yes, sir, they are.

Q. Okay. With the benefit of that, if you could please turn to Government's Exhibit 21. Just let me know when you've had a chance to look at that.

A. Okay.

Q. Okay. And, you know what, while we're doing that, if you can also please look at 21 and 23.

A. Okay.

Q. Special Agent, what are Government Exhibits 21 and 23?

A. 21 and 23 are -- 21 is Christian Reed's subscriber information from his Venmo account, and 23 is some of the transaction records from his Venmo account.

Q. Are these fair and accurate copies of the subscriber information and the transactions that you referenced?

A. Yes, sir, they are.

Q. And do you know that from having reviewed the Venmo

account yourself?

A. Yes, sir, I do.

MR. ROTH: Your Honor, the government moves to admit Government Exhibit 21 and 23.

MR. CORTEZ: Same as before.

THE COURT: Okay. 21 and 23 are received.

(Government's Exhibits 21 and 23 received in evidence.)

MR. ROTH: Thank you, Your Honor.

If we can please pull up 21.

Q. Special Agent, what is the name, the first name and last name --

MR. CORTEZ: It disappeared.

Q. BY MR. ROTH: What is the name of the person whose account this is associated with?

A. The name is Christian Reed.

Q. Okay. And do you see a user name?

A. Yes, sir, I do.

Q. What name is that?

A. ChristianReed06.

Q. Do we see that user name anywhere else in this case?

A. We see a similar name in his Snapchat account.

Q. Okay. And do you see a DOB?

A. Yes, sir, I do.

Q. What is the DOB?

A. 5/20/1994.

Q. Can you remind us what Christian Reed's birthday was.
A. May 20th, 1994.
Q. Okay. If we can now please bring up Government's Exhibit 23.
Special Agent, do you see in government's -- let's start with this. Can you give us, in a sentence or two, a summary of what this is.
A. So this is the transaction history, or an excerpt of the transaction history of Christian Reed's Venmo account.
Q. Okay. And what is -- you see in the status column, there are one, two, three, four approved transactions; correct?
A. Yes, sir.
Q. What are the four dates of the four approved transactions?
A. May 1st, May 3rd, May 6th and May 10th; all in 2020.
Q. And I apologize. There is one more at the very bottom.
A. The one at the bottom is May 15th, also of 2020.
Q. Okay. And do you see notes associated with these approved transactions?
A. Yes, sir, I do.
Q. What are the things written for the approved transactions?
A. The notes are plug walk, My G, OC, some tings and plug walk.

Q. So we have two references to a plug here; correct?
A. Yes, sir.
Q. Okay. And actually, there is -- do you see in the third row, a reference to OC?
A. Yes, sir, I do.
Q. Okay. Do you see the counterparty?
A. Yes, sir, I do.
Q. What is the counterparty name?
A. Mo David.
Q. Special Agent, did you come to identify the person using the account named Mo David?
A. Yes, sir, I did.
Q. Whose account is it?
A. Nameer Atta's account.
Q. Special Agent -- we can take this down.
The records you just saw, that's a portion of Christian's Venmo records; correct?
A. Yes, sir, that's correct.
Q. Who was the other person to whom Christian sent money over?
A. Michael Mancini.
Q. And did Christian have little notes in the payments he sent to Michael Mancini?
A. He did.
Q. Did that prompt you to conduct any follow-up

investigation as to Mr. Mancini?
A. Yes, sir, I did.
Q. And from your investigation, who is Michael Mancini?
A. Christian Reed's father.
Q. And where does Michael Mancini live?
A. Scranton, Pennsylvania.
Q. Special Agent, in the course of your investigation, did you try to find any indication of other people who might have sold drugs to Christian?
A. Yes, sir, I did.
Q. Did you find any evidence of any other person who sold fentanyl or oxy or percs to Christian?
A. No, sir, I did not.
Q. Okay. Thank you.

Now, beyond the evidence pertaining to Christian, did you find any other evidence in this case that bears on this matter?
A. Yes, sir, I did.
Q. And did you, for instance, seize another phone?
A. Yes, sir, I did.
Q. Whose phone did you seize?
A. Nameer Atta's phone.
Q. Okay. If you could please look on the bench there, I think you'll see Government's Exhibit 201.
A. Yes, sir.

Q. Do you recognize Government's Exhibit 201?
A. Yes, sir, I do.
Q. What is it?
A. Nameer Atta's cell phone.
Q. How do you know that that's Nameer Atta's cell phone?
A. Because I took that cell phone off of him on May 5th, 2021.
Q. Okay. So you had an in-person encounter with Mr. Atta on May 5th of last year?
A. Yes, sir, that's correct.
Q. And at that time, Exhibit 201 was in his possession?
A. That is correct.
Q. And as part of your encounter, you seized Exhibit 201?
A. Yes, sir, I did.
Q. And you recognize it here today?
A. Yes, sir, I do.

MR. ROTH: Your Honor, the United States moves to admit Government's Exhibit 201.

THE COURT: Any objection?

MR. CORTEZ: Same as before.

THE COURT: 201 is received.

(Government's Exhibit 201 received in evidence.)

MR. ROTH: Thank you.

Q. Having seized -- one second.

MR. CORTEZ: Sorry. May we have a moment.

(Attorney conference.)

Q. BY MR. ROTH: Okay. Special Agent, did you execute a search on Government's 201?

A. Yes, sir, I did.

Q. And what did you get, just as a general matter, in conducting a search of that?

A. I got photos, videos, text messages, social media information, things of that nature.

Q. Okay. I asked a bad question. I'm sorry. Let me try it again.

Did you have a forensic examiner conduct a download of 201?

A. Yes, sir, I did.

Q. In the exact same way that Christian's phone was downloaded?

A. Yes, sir, exactly.

Q. Did you receive a download of the defendant's phone back from the examiner?

A. I did.

Q. Okay. If you could please have a look at Government's Exhibits 25 and 26.

A. Okay.

Q. Do you recognize them?

A. Yes, sir, I do.

Q. What are they?

A. They are selfies of Nameer Atta.
Q. And where did you first see those?
A. I saw those in Nameer Atta's cell phone.
Q. And are these fair and accurate copies of the photos that you saw in the defendant's phone?
A. Yes, sir.

MR. ROTH: Move to admit 25 and 26, your Honor.

THE COURT: Any objection?

MR. CORTEZ: Same as before, in limine.

THE COURT: Okay. 25 and 26 are received. The objection is overruled.

(Government's Exhibits 25 and 26 received in evidence.)

MR. ROTH: Thank you. If we can bring up 25.

Q. Okay. Special Agent, who is that?
A. Nameer Atta.
Q. Okay. Now, it's a little bit hard to see, but can you see the reflection in the sunglasses that the defendant is wearing in this photo?
A. Yes, sir.
Q. What can you see reflected in the reflection of the sunglasses?
A. His cell phone.
Q. Okay. Great. Thank you. If we can zoom out of that.

In this picture, the defendant is wearing a hat; correct?

A. Yes, sir, that is correct.
Q. Can you see writing on the top of the hat above the brim?
A. Yes, sir, I can.
Q. What does it say?
A. "GOAT." G-o-a-t.
Q. Thank you. If we could please go to Government's Exhibit 26.
And, again, who is this?
A. Nameer Atta.
Q. And do you believe this to be another self-taken or selfie photograph?
A. Yes, sir, I do.
Q. And, again, this was found where?
A. On Nameer Atta's cell phone.
Q. Thank you.
Now, if we could please turn to Government's Exhibits 33, 35, 37, 38 and 39. Please review those.
A. 33, 35, 37, 38 and 39.
Q. Please look up after you've had a chance to look at those.
MR. ROTH: Your Honor, if we could have a moment.
(Juror No. 2 enters courtroom.)
MR. ROTH: Should I continue, Your Honor?
MR. CORTEZ: I will go with the prior ruling.

THE COURT: Okay. We're going to hold on one second so that Ms. Ortiz can speak to her.

Ladies and gentlemen, feel free to stand up and stretch your legs, if you'd like to do that. It should only be a second.

(Brief pause in proceedings.)

THE COURT: Okay. Mr. Roth, could you please continue your examination.

MR. ROTH: Thank you, Your Honor.

Q. Special Agent, what are the exhibits that I've identified as Government's 33, 35, 37, 38 and 39?

A. They are messages recovered from Nameer Atta's cell phone.

Q. Are they text message exchanges?

A. Yes, sir, they are.

Q. Is it fair to say that for the most part, these are excerpted from longer text strings on the phone?

A. Yes, sir, that's correct.

Q. How do you know that those exhibits are from the defendant's phone?

A. Because I was provided with a digital copy of Nameer Atta's cell phone. I reviewed that -- I've reviewed the digital copy, and I observed these text messages.

Q. Are these fair and accurate copies of the text messages you saw in defendant's phone?

A. Yes, sir, they are.

MR. ROTH: Your Honor, we would move to admit Government's 33, 35, 37, 38 and 39.

MR. CORTEZ: Same as before.

THE COURT: Okay. The objection is overruled. 33, 35, 37 and 39 are received.

MR. ROTH: Apologies, Your Honor. Also 38.

THE COURT: And 38?

MR. ROTH: Yes, sir.

THE COURT: Okay.

(Government's Exhibits 33, 35, 37, 38 and 39 received in evidence.)

MR. ROTH: Thank you. If we can please bring up Government's Exhibit 33.

Q. Now, first, do you see two columns, a "from" column and a "to" column?

A. Yes, sir, I do.

Q. I'd like to focus on the "to" column for just a moment.

Do you see there written a phone number next to the name Nameer Atta?

A. Yes, sir, I do.

Q. Okay. What is the phone number that is written there?

A. Let me try again. (858) 699-6818.

Q. Whose phone number is that?

A. Nameer Atta's.

Q. The defendant's?
A. Yes, sir.
Q. How do you know that the defendant's phone number is (858) 699-6818?
A. A couple of different reasons. We conducted database checks and identified that phone number as belonging to the defendant. And then on a couple of occasions in May of last year, I had an opportunity to speak to the defendant on the phone, and he called me on my cell phone from that phone number.
Q. Okay. Now, you heard the defendant's voice on the phone; right?
A. Yes, sir, that is correct.
Q. Have you heard the defendant's voice in any other context?
A. Yes, sir, I have.
Q. What are the contexts in which you've heard the defendant's voice?
A. Well, videos on his cell phone.
Q. Have you spoken to him face-to-face before?
A. I also have spoken to him face-to-face, yes, sir.
Q. Having listened to his voice and recordings, and having spoken to him face-to-face, was the defendant the person who called you when you spoke with someone that called from the phone number (858) 699-6818?

A. Yes, sir, it is.
Q. Okay. Now, here we have some text messages between the defendant and another contact; right?
A. Yes, sir.
Q. And what is the name of the contact as it is saved in this exhibit?
A. Johnny Gym, LA Fitness.
Q. Okay. And for ease, I'm going to refer to him as Johnny. Okay?
A. Sure.
Q. If we can please scroll down to row five.
What is the incoming message from Johnny to the defendant?
A. The message is Ay, you have plug for perc? Or any strong pain killer? Bought to put in hella hours on a tattoo session this weekend.
Q. What's the date stamp of this message?
A. November 8th, 2019.
Q. Okay. If we can scroll down to row six.
How does the defendant respond there?
A. The defendant responds, yea, my homie got some script percs for $20 I think.
Q. Fair to say "script" is short for "prescription"?
A. Yes, sir.
Q. Okay. If we could scroll down to row ten.

What does Johnny ask the defendant there?

A. Johnny asked the defendant, could you ask how many milligram -- I'm sorry. Could you ask how many mg they are.

Q. Okay. And if you could scroll down, Row 11, how does the defendant respond there?

A. The defendant responds, the only prescription ones are the 10's. Anything else is pressed (fake).

Q. Let's take down 33, please.

Special Agent, in the course of your review of the defendant's phone, did you find any screenshots of any news articles?

A. Yes, sir, I did.

Q. And were you able to ascertain the date of the news article that you found on the defendant's -- the screenshot that you found on the defendant's phone?

A. Yes, sir, I did.

Q. What was the date of the screenshot -- of the article that you found screenshotted on the defendant's phone?

A. February 14th, 2019.

Q. Did that article say anything precisely about the nature of M30 pills?

A. Yes, it did.

Q. In a sentence, what did it say?

A. That the M30 pills were being counterfeited and laced

with fentanyl.

Q. Okay. And is it your understanding that M30 pills are Percocet in their genuine form?

A. Yes, sir.

Q. Okay. If we can please go to Government's 35.

And by the way, the messages with Johnny were in November of that year; correct?

A. That's correct.

Q. Okay. Let's look at Government's 35.

What is the name of the saved contact that the defendant is speaking with here?

A. The name is Alyssa Estell's friend Custy.

Q. Okay. I'll refer to this one as Alyssa. Okay?

A. Okay.

Q. What are the dates of the two exchanges on April 17th between the defendant and Alyssa?

A. Say again.

Q. What is the date of the two exchanges -- of the exchange in rows one and two?

A. That date is April 17th, 2020.

Q. And there, we see the defendant sent Alyssa two messages; right?

A. That's correct.

Q. Could you just read those two messages that the defendant sent to Alyssa.

A. The first one is, I also have Perc's g. And the second one is, back on the menu.

Q. Let's go down now to row five, please.

What is the date of that message?

A. May 1st, 2020.

Q. And if we go to rows six and seven, what are the dates of those two messages?

A. May 2nd, 2020.

Q. What does Alyssa say to the defendant -- or ask the defendant on May 1st, as noted in row five?

A. Alyssa asked the question, how much would seven perks be?

Q. Now, perks is spelled with a "K" there; right?

A. Yes.

Q. Do you believe there is any significance to the spelling difference there?

A. No, sir.

Q. Okay. How does the defendant respond?

A. The defendant responds, Most do 45 each. I do 3 for 100. But I got you 7 for 210.

Q. And then what does he say in the next line?

A. The next one is, Trust me, the most trusted and most potent percs in SD and OC rn.

Q. The most trusted and the most potent percs in SD and OC?

A. Yes, sir.
Q. Do you know -- what do you believe SD and OC is?
A. SD is San Diego and OC is Orange County.
Q. Okay. Let's please go to Government's 37.
What is the date of Government's 37?
A. The date is November 12th, 2019.
Q. Okay. And fair to say that there is -- there are two exchanges -- there are two statements on November 12th; correct?
A. That's correct.
Q. And these are all outgoing messages the defendant sent; right?
A. That is correct.
Q. What's the name of the contact that the defendant sent all these messages to?
A. Ryyan Al-Orainy. And then beside the name is the emoji or icon for an electrical plug.
Q. Okay. So this is a message sent by the defendant to someone named Ryyan, and in the defendant's phone Ryyan is saved with a plug?
A. Yes.
Q. Okay. What does the defendant write to Ryyan plug on November 12th?
A. The defendant writes, How many percs you got on you? Bruh, I got a lot of offers now for others selling percs.

Q. What does he write to Ryyan the plug on November 22nd?
A. I got bands ready for percs.
Q. And then what does he say below that?
A. He says, I can take you to get the percs.
Q. And then finally, on November 30th of '19.
A. He says, Where the percs at.
Q. Thank you.

MR. ROTH: Let's please go to Government's Exhibit -- one second, Your Honor. Thank you.

Q. Special Agent, in the middle -- let me follow up on something.

In row three there --

A. Yes, sir.
Q. -- do you see a reference to the word "bands"?
A. Yes, sir, I do.
Q. Okay. I'm going to go a little bit out of order here, and I'm going to be very explicit. Okay. I want you to step out of your role as the person describing the evidence.

MR. CORTEZ: Objection. Improper commentary.

MR. ROTH: Well, I actually think it's important.

THE COURT: Okay. I'll allow you to proceed in that manner, to make the distinction between the two types of testimony.

Q. BY MR. ROTH: Okay. I want to ask you one question that goes back to the first part of your testimony, which is just,

can you give an explanation of something that you understand based on your experience as an investigator.

A. Yes, sir.

Q. Okay. Do you understand what "bands" is?

A. Yes, sir, I do.

Q. What is, in your experience, the term "bands"?

A. Bands is bands around stacks of cash.

MR. ROTH: Okay. Thank you. We're going to come out of that and go back into the testimony. And I apologize to the Court for forgetting to do that earlier. Okay.

MR. CORTEZ: I move to strike, Your Honor. No proper foundation.

THE COURT: Okay. We were proceeding based on the Court's prior rulings. If you would like to lay a foundation and submit this or tender this witness as a 702 expert, you may do so at this time.

Q. BY MR. ROTH: Okay. Special Agent, I'm going to back up a little bit.

Earlier in your testimony, do you recall describing your experience as an NCIS special agent?

A. Yes, sir, I do.

Q. Do you recall all of the testimony you gave on the specialized training that you received to be an NCIS agent?

A. Yes, sir, I do.

Q. Do you recall describing 14 years of on-the-job

training?
A. Yes, sir, I do.
Q. And do you recall the 20-odd drug investigations that you said you have participated in?
A. Yes, sir, I do.
Q. Do you recall all of the different investigative techniques that you described using in the course of your 14 years?
A. Yes, sir, I do.
Q. Okay. And do you recall offering testimony showing that you have the ability to infer the meaning of vague or -- coded or ambiguous terms as they pertain to drug trafficking?
A. Yes, sir, I do.
Q. That last thing, is that something that you have done consistently over the course of your career as a NCIS special agent?
A. Yes, sir, it is.

MR. ROTH: Your Honor, the United States would tender Special Agent Stephen Logan as an expert witness under Rule 702 for the purposes of offering testimony on the nature of language used by drug traffickers.

MR. CORTEZ: I still have the same objection. He didn't ask about bands. And he did only 20 investigations.

THE COURT: Okay. We've got two different

objections going, the 702 expert, as well as the lack of foundation objection now being lodged.

MR. CORTEZ: Correct.

THE COURT: So as to the expert testimony, I do find that you have established the expertise of this witness, and I will allow him to render an opinion under Rule 702.

As to the basis of his opinion, I sustain the objection as to lack of foundation.

Q. BY MR. ROTH: Okay. Special Agent, do you see the term "bands" in row three?

A. Yes, sir, I do.

Q. Have you seen the term "bands" in the course of your career as a special agent?

A. Yes, sir, I have.

Q. Have you seen "bands" used in a consistent, particular way?

A. Yes, sir, I have.

Q. And in your experience, what is the consistent, particular way that the term "bands" has been used when we're talking about drug trafficking?

A. "Bands" is a reference to bank bands wrapped around stacks of cash.

Q. Okay. Now, having done all of that, is it fair to say that the qualification you were just given as an expert pertains to the testimony you gave only at the start of your

examination and the limited question about bands that you just answered?

A. Yes, sir.

Q. And that separately, you're testifying as a fact witness?

A. Yes, sir.

MR. ROTH: Okay. I think I've made a record.

THE COURT: Yes.

MR. ROTH: Thank you.

Q. If we could please turn to Government's 38.

Special Agent, who are the two people communicating with each other in Government's Exhibit 38?

A. An individual identified as Salim and the defendant, Nameer Atta.

Q. What is the date of these exchanges?

A. March 9th, 2020.

Q. Okay. And remind us when Christian Reed died.

A. Christian died on May 21st, 2020.

Q. All right. What is the -- this set of messages begins with one, two, three, four, five, six, six messages that Salim sent to the defendant; right?

A. Correct.

Q. Could you please read those.

A. The first message is, Bro, ur perc plug bomedyyyy. I found a new one. M30s. Real script. Swear. No fentanyl.

Q. Okay. So Salim is communicating to the defendant, I found a new source of M30s, these are prescription. They have no fentanyl?

A. Yes, sir.

Q. How does the defendant respond in the next two rows? I'm sorry. Yeah -- please.

A. The defendant responds, the fact you said script 30s, LOL. You're retarded.

Q. Okay. And if we could please go down a little bit. Do you see -- in the row right above the yellow line, Salim sends a message in response.

A. The row above the yellow line?

Q. Yes.

A. Yes, sir.

Q. It's dated 9:51:49 p.m. What does Salim write to the defendant there?

A. Salim writes, they have script thirties.

Q. If we can go to the next page of this exhibit.

What does the defendant say in response to that?

A. The defendant responds, not perc's, LOL. 2000 percent they don't, LOL.

Q. So Salim says they have prescription percs, and the defendant responds, LOL, 2000 percent they don't, LOL; is that right?

A. That's correct.

Q. Okay. Now, if we could go to the last message on this. It's dated April 2nd. Do you see that one?
A. Yes, sir, I do.
Q. And do you see that there is a gmail address that sends a message to Salim?
A. Yes, sir.
Q. Okay. Is that gmail address associated with any particular person or phone number in general?
A. Yes, sir, it is.
Q. Who is it associated with?
A. It's associated with the defendant, Nameer Atta.
Q. And we can see that in the second column here; right?
A. Yes, sir, that's correct.
Q. And generally, we see it in every single chat that we've -- or text exchange that we've seen; right?
A. Yes, sir.
Q. Okay. And just to be clear, what does the defendant say to Salim there?
A. At Mr. -- @MrDLB, quote, Mo David.
Q. Have we seen Mo David anywhere else?
A. Yes, sir, we have.
Q. Where else have we seen Mo David?
A. We saw that in Christian Reed's Venmo transaction history.
Q. And who was Mo David in the transaction history for

Christian Reed?

A. Nameer Atta.

Q. The counterparty that Christian Reed sent money to?

A. That's correct.

Q. Okay. Just to be clear on the record, Mo David as written by the defendant in this message he sent to Salim is the name of the counterparty that received payments from Christian at that number?

A. Yes, sir, that's correct.

Q. Thank you. If we could look at Government's 39.

Now, this is in a different format; right?

A. Yes, sir, it is.

Q. But this is also messages on the defendant's phone?

A. Yes, sir, that's correct.

Q. And who is he sending a message to here?

A. He is sending the message to Salim.

Q. And what is the date of this one?

A. February 21st, 2020.

Q. What does he say to Salim?

A. I got percs.

Q. If we can go to Page 2. Do you see a photo there?

A. Yes, sir, I do.

Q. And can we go to Page 3.

Is Page 3 a blowup of the image that the defendant sent to Salim?

A. Yes, sir, it is.
Q. Okay. What is it?
A. It is a prescription pill bottle with white pills in it.
Q. Okay. Thank you. We can take that down.
If we could please have you look at Government's Exhibit 41.
A. 41?
Q. Do you recognize it?
A. Yes, sir, I do.
Q. What is it?
A. It is a photograph pulled from Nameer Atta's cell phone.
Q. What is it of?
A. It is a photograph of banded dollar bills.
Q. And how do you know it came from the defendant's phone?
A. Because I reviewed the digital download of the defendant's phone and observed this image.
Q. Is this a fair and accurate copy of the photo you saw on defendant's phone?
A. Yes, sir, it is.
MR. ROTH: Your Honor, we would move to admit Government's Exhibit 41.
MR. CORTEZ: Same as before.

THE COURT: Okay. The objection is overruled. 41 is received.

(Government's Exhibit 41 received in evidence.)

MR. ROTH: If we can please pull it up.

Q. Special Agent, in the center of this photo, do you see a note with some handwriting on it?

A. Yes, sir, I do.

Q. What is written there?

A. G-o-a-t with a date of 10/18/2019.

Q. Have we seen G-o-a-t anywhere else?

A. Yes, sir, we have.

Q. Where have we seen that?

A. We saw it on a hat that Nameer Atta was wearing in a photograph.

Q. And what is surrounding the note?

A. Banded dollar bills.

Q. Now -- so are those bands?

A. Yes, sir. Those are bank bands.

Q. Just literally speaking?

A. Bank bands, yeah.

Q. Okay. Thank you. We can take down 41.

Special Agent, I'm going to now ask you to please look at Government's Exhibits 42A, B, C and G. I'm going to skip D, E, F.

A. Okay.

Q. What are these?
A. They are menus from Snapchat.
Q. Do you recognize them?
A. Yes, sir, I do.
Q. Where did you -- first, where did you see those?
A. I found those in Nameer Atta's cell phone.
Q. Okay. And are these fair and accurate copies of the banners that you saw in the defendant's phone?
A. Yes, sir, they are.

MR. ROTH: Your Honor, I'd move to admit 42A, B, C and G.

MR. CORTEZ: Same as before.

THE COURT: Okay. The objection is overruled. 42A, B, C and G are received.

(Government's Exhibit 42A, B, C and G received in evidence.)

MR. ROTH: Thank you, your Honor.

If we can please bring up 42A.

THE COURT: Mr. Cortez, do you request any specific instruction as to these exhibits?

MR. CORTEZ: As before, my prior position.

THE COURT: Okay.

MR. CORTEZ: Thank you.

THE COURT: You're welcome.

Q. BY MR. ROTH: Special Agent, what is this?

A. It is a menu.
Q. Okay. And fair to say, the word "menu" is at the top there?
A. Yes, sir, that's correct.
Q. Below the word "menu," do you see a series of initials that are repeated several times?
A. Yes, sir, I do.
Q. What initials are those?
A. DLG.
Q. Have we seen DLG anywhere else?
A. Yes, sir, we have.
Q. Where have we seen it?
A. In messages on Christian Reed's cell phone and in Christian Reed's Snapchat account.
Q. So I'm going to beg your patience for a moment and ask Ms. Douglas if she can pull up Exhibit 14 briefly.

Thank you. That was pretty quick.

Do you see that first message that defendant sent to Christian Reed on April 14th?
A. Yes, sir, I do.
Q. Can you just read it again quickly. Read it again.
A. It is, send at symbol of who referred to verify yourself and send school/area for delivery reference. Do not leave on read. Thanks, DLG, handshake emoji.
Q. Thank you. If we can go back to 42A.

Now, there is a list of items below the repeated DLG initials; correct?

A. Yes, sir.

Q. I'd like to direct your attention to the one that's second from the bottom.

A. Second from the bottom?

Q. Uh-huh.

A. Yes, sir.

Q. What is written there?

A. It is a blue diamond emoji, and percs 30 mg, most trusted out.

Q. So there is a menu item percs, 30 milligrams, and the text is most trusted; right?

A. Yes, sir.

Q. And the emoji associated with that is this blue diamond; correct?

A. That is correct.

Q. Okay. If we can zoom out or go back out of this. If we can bring up 42B.

How does 42B compare to 42A?

A. They are similar in the sense that it's the same menu, but the -- there are redactions or updates to that menu.

Q. And with respect to the listing of percs, how is the menu modified, if at all?

A. It says re-up soon.

Q. If we can please go to 42C. What is this?
A. A new menu.
Q. Okay. And do you see the menu is broken into two categories?
A. Yes, sir.
Q. I'd like you to go to the second category. What does that read?
A. The second category is labeled non-THC product list.
Q. And what is the third item on the non-THC product list?
A. It is a pill emoji and the word "percs."
Q. Now, this emoji is not a blue diamond; right?
A. That is correct.
Q. Can you give a description.
A. It is a red and yellow pill emoji.
Q. Okay. Now, there is no reference to 30 here; correct?
A. That's correct.
Q. And there is no reference to most trusted here?

MR. CORTEZ: Your Honor, the picture speaks for itself.

THE COURT: Overruled.

Q. BY MR. ROTH: Does this picture refer to 30s?
A. No, sir, it does not.
Q. Does this picture say anything about being most trusted?

A. No, sir, it does not.
Q. Let's go to 42G, please. What is this?
A. A menu.
Q. And do you see the item that is second from the bottom on this third menu?
A. Yes, sir, I do.
Q. What is there?
A. It is a round, blue emoji with a white letter M in it. In the middle of it, it says Perc 30s, most trusted in SD, handshake emoji.
Q. So here, there is a reference to Perc 30s; is that right?
A. Yes, sir.
Q. And I'm sorry. What does it say next to Perc 30s?
A. Most trusted in SD, with a handshake emoji.
Q. Special Agent, have you personally viewed M30 pills?
A. Yes, sir, I have.
Q. What color are they?
A. Blue.
Q. Okay. So this is a blue circle with an M in it, and the other references a blue diamond; correct?
A. That's correct.
Q. Thank you. We can take down 42G. Thank you.
THE COURT: Mr. Roth, if you can give me just a second.

With respect to Exhibits 42A, B, C and G, ladies and gentlemen, there is an instruction that you're going to be given that some evidence was introduced for a limited purpose and a limited purpose only.

With respect to those exhibits, you are to only consider them as to the content of those exhibits that was specifically addressed here in court today and for no other reason. So the remainder of those exhibits, there was no testimony about the remainder of those exhibits, and you are not to consider the remainder of those exhibits in any fashion whatsoever.

MR. ROTH: Thank you, Your Honor.

THE COURT: Please, go ahead, Mr. Roth.

MR. ROTH: Thank you, Your Honor.

Q. Special Agent, in the course of your search of the defendant's phone, did you find anything of note in addition to photographs, text messages and menus?

A. Yes, sir, I did.

Q. What did you find?

A. I found an item in the Note section of the cell phone.

Q. Okay. And so -- just not as an expert or anything, but your common experience in life, phones have a function that allows you to just take down little notes to yourself; right?

MR. CORTEZ: Objection. Leading. This has happened

a lot.

THE COURT: Sustained.

Q. BY MR. ROTH: Okay. Do you know what the Notes section of a phone is?

A. Yes, sir, I do.

Q. Can you just give a general explanation of it.

A. It's an app on your phone where you type notes.

Q. Great.

What, in particular, did you find in the Notes section?

A. I found a list of Nameer Atta's sales.

Q. Okay. Did this list have a title?

A. It did.

Q. What was the title of it?

A. It was red exclamation point, and it said, my own sales. And then it had an emoji, it was a bag of money on it -- or it was a bag with a green dollar bill sign on it.

Q. Have you printed off this list?

A. Yes, sir, I have.

Q. How many pages is it?

A. 207.

Q. And how would you describe a given page of the list?

A. It's a business ledger.

Q. Okay. So what kind of things are documented on it?

A. Business ledgers will have dates, times, locations,

sales, product, purchaser, seller, things of that nature.
Q. Okay. Did you get any sense of the date range that the list covers?
A. Yes, sir, I did.
Q. What is the date range of the list?
A. It's about 23 months, running from -- I'll have to work backwards. April of '21 to -- from May of 2019 to April of '21.
MR. ROTH: Okay. This is for ID only, Your Honor.
Q. Special Agent, if you can have a look at Government's Exhibit 45.
A. Yes, sir.
Q. What is 45?
A. That's the printed-out business ledger.
Q. Okay. Do you recognize it?
A. Yes, sir, I do.
Q. Is that an accurate representation or copy of the list that was in the defendant's phone?
A. Yes, sir, it is.
Q. Special Agent, if you would then please turn to Government's Exhibit 46.
A. Okay.
Q. What is Government's 46?
A. Government's 46 an excerpt of that same business ledger.

Q. I'm going to ask you a few follow-up questions about that.
A. Yes, sir.
Q. Is Government's Exhibit 46 a chart?
A. Yes, sir, it is.
Q. Who prepared that chart?
A. I did.
Q. What were you documenting in the chart at Government's 46?
A. Information from defendant's -- the defendant's business ledger as it related to Christian Reed.
Q. Okay. So is Government's 46 a summary chart reflecting the portions of the list that concerned Christian?
A. Yes, sir.
Q. Is Government's 46, to the best of your knowledge and ability, an accurate reflection of that excerpt of the lengthy list?
A. Yes, sir, it is.

MR. ROTH: Your Honor, the United States moves to admit Government's 46 under 1006.

MR. CORTEZ: In limine and the same as before.

THE COURT: Okay. The objection is overruled. 46 is received.

(Government's Exhibit 46 received in evidence.)

MR. ROTH: If we can please pull up Government's

46.

Q. Special Agent, do you see at the top a label?

A. Yes, sir.

Q. What is that?

A. That is a copy of the label from the original list.

Q. Okay. Why did you choose to put that on top of the summary chart?

A. Just so I knew where the information came from.

Q. This is a cross-reference?

A. Yes, sir.

Q. Special Agent, what is the date range of the information on Government's 46?

A. April 17th to May 20th, 2020.

Q. How many entries are on Government's 46?

A. 16.

Q. And when we look at the name, what name is written there?

A. The name in the first row is Chris and the rest of them are Chris Army.

Q. Remind me what Christian Reed did for a living?

A. He was a United States Marine.

Q. Have we seen Chris Army anywhere else in this case?

A. Yes, sir, I have.

Q. Okay. Now, I want to be very careful here, so I'm going to ask you a very precise question: Did Christian send the

defendant a comment of some kind over Snapchat?
A. Yes, sir, he did.
Q. Did the defendant then post that on his own Snapchat as a review of some kind from Christian?
A. Yes, sir, he did.
Q. In doing so, did the defendant name or identify the person who sent him the note?
A. He did.
Q. How did he identify that person?
A. Chris Army.
Q. Okay. How many blue diamonds, or Ms, were sold to Christian per this chart?
A. 57.
Q. How much money did the defendant receive from Christian for these 57 pills?
A. $1,810.
Q. Do you see in the column of payments, there are notations for Venmo?
A. Yes, sir, I do.
Q. Did you highlight those in red?
A. Yes, sir, I highlighted those in red.
Q. Why did you do that?
A. Just to draw my attention to them so I could use those to reference the Venmo transactions.
Q. Okay. Have you compared the entries for Venmo on

Government's 46 to the records you got from Venmo?
A. Yes, sir, I did.
Q. And how do they compare?
A. They match.
Q. Okay. I'd like you to go to the bottom of this chart, please. What is the date of the final sale?
A. May 20th, 2020.
Q. And what was sold and for how much?
A. 12 Perc 30s for $300.
Q. And did Christian pick these up?
A. Yes, sir, he did.
Q. What time did he pick these up?
A. According to the chart, 4:00 p.m.
Q. Okay. And I should ask, is this copied out of the ledger?
A. Verbatim, yes, sir.
Q. Okay. What about just before May 20th. What happened the day before, for instance?
A. Christian conducted two purchases.
Q. Of how much?
A. The first purchase was one Perc 30 for $40. He picked it up at 2:00 p.m. And then a second purchase for -- of two Perc 30s for $80. He also picked those up at approximately 5:30 p.m.
Q. And what about the day before that?

A. The day before that, he conducted a purchase on the 18th of May at 5:30 for a single Perc 30 for $40.

Q. What about a few days before that, on the 15th?

A. He purchased seven Perc 30s for $200. Picked them up at approximately 10:50 and also provided $60 through Venmo.

Q. So from the 15th to the 20th, the defendant sold Christian several --

A. 23.

Q. 23. How many did he sell between the 15th and the 20th?

A. Say again.

Q. How many Percocets or blue M30 pills, or whatever, did the defendant sell Christian between the 15th and 20th of May?

A. 23.

Q. Thank you.

Let's please take down Government's 46.

Special Agent, do you recall earlier in your testimony describing a sort of satellite imaging map that you saw on Christian's phone?

A. Yes, sir, I do.

Q. Have you seen that map anywhere else?

A. Yes, sir, I have.

Q. Where have you seen it?

A. In Nameer Atta's cell phone.

Q. If you can please have a look at Government's 49.
A. 49, yes, sir.
Q. Do you recognize it?
A. I do.
Q. What is it?
A. It is a Google Map satellite image pulled from -- that I saw in Nameer Atta's cell phone.
Q. Is this a fair and accurate depiction of the satellite image that you saw on the defendant's phone?
A. Yes, sir, it is.

MR. ROTH: Your Honor, move to admit Government's 49.

MR. CORTEZ: Same as before.

THE COURT: 49 is received.

(Government's Exhibit 49 received in evidence.)

MR. ROTH: Can you please pull it up.

Q. Special Agent, can you walk us through Government's 49.
A. Yes, sir. So this is a Google Maps GPS satellite image of 9845 Jake Lane, and the building just adjacent to it is 9835 Jake Lane.

There is a red kind of rounded-edge box in between 9845 and 9835. There is an arrow drawn to it, a red arrow, and above that red arrow is a banner that says "bigger orders/wait." And then adjacent to 9845 is a white circle, and then an arrow from that, and it says -- the banner above

the white arrow says "quick spot."

There is also a label showing where the pool is. And on 9845 at the bottom of the white circle, is a red drop pin.

Q. Special Agent, earlier you testified that the defendant lives here; right?

A. Yes, sir, that's correct.

Q. What was his address?

A. 9845 Jake Lane.

Q. Okay. And do you see that in the red circle, there is sort of two parallel buildings, one adjacent to the road and one to the left of it?

A. Yes, sir.

Q. Which one is the defendant -- where the defendant lives?

A. The building to the right.

Q. The right of the circle?

A. If you're looking at the two buildings from the top, the building on the right-hand side.

Q. So the one directly below the white circle?

A. Yes, sir, that's correct.

Q. Okay. Could we please bring up Government's 13.

Remind me where Government's 13 was found.

A. Christian Reed's cell phone.

Q. And how does it compare to Government's 49 from the

defendant's phone?
A. Very similar.
Q. Okay. Thank you.
Special Agent, did you try to find another source of map depicting this place? Did you go online?
A. I did.
Q. Did you look for a map of the same spot that's depicted in 49 and 13?
A. Yes, sir, I did.
Q. Could you look at Government's 51.
A. Okay.
Q. What is it?
A. It is a Google Maps GPS satellite image.
Q. Did you make this Google Map satellite image?
A. Yes, sir, I did.
Q. Okay. Is this a fair and accurate copy of what you made?
A. Yes, sir, it is.
MR. ROTH: Your Honor, move to admit Government's 51.
THE COURT: Any objection?
MR. CORTEZ: Actually, none to this one.
THE COURT: Okay. 51 is received.
(Government's Exhibit 51 received in evidence.)
MR. ROTH: If we can just pull it up.

Q. And simple point. What is reflected in the map you prepared from Google?
A. A red drop pin on 9845 Jake Lane, San Diego, California 92126.
Q. How does this compare -- how does this picture, just as a picture, compare to Government's 13 and Government's 49?
A. Very similar.
Q. Same place?
A. Same place, yes, sir.
Q. Okay. Good.
Special Agent, I'm going to ask you finally to have a look at Government's 50.
A. Okay.
Q. Do you recognize it?
A. Yes, sir, I do.
Q. What is it?
A. It is a contact card from Nameer Atta's cell phone.
Q. Do you know -- how do you know that?
A. Because when I reviewed the cell phone download, I observed this contact card.
Q. Fair and accurate copy of the information you saw on the phone?
A. Yes, sir, it is.
MR. ROTH: Your Honor, we move to admit Government's 50.

MR. CORTEZ: Same as before.

THE COURT: Okay. 50 is received.

(Government's Exhibit 50 received in evidence.)

MR. ROTH: If we can please bring up 50.

Q. Special Agent, whose contact is saved in the defendant's phone here?

A. It is Christian Reed's Venmo contact.

Q. And what is the user name that is saved in association with Christian's Venmo?

A. Christianreed06.

Q. Thank you. We can take this down.

Special Agent, earlier you testified to a CD that you reviewed that had the full contents of the Venmo records that you obtained for Christian and the defendant.

Do you remember that testimony?

A. Yes, sir, I do.

Q. Okay. And with respect to having made that -- given that testimony, could you please have a look at Government's 53 and 54.

A. 53 and 54?

Q. Please look up when you're ready.

A. Okay.

Q. Do you recognize these items?

A. Yes, sir, I do.

Q. What are 53 and 54?

A. 54 is the subscriber information for Nameer Atta's Venmo account, and 53 is transaction history between Nameer Atta and Christian Reed.

Q. Are 53 and 54 fair and accurate copies of the information you directly reviewed from Venmo?

A. Yes, sir, it is.

MR. ROTH: Your Honor, we move to admit 53 and 54.

MR. CORTEZ: Same as before.

THE COURT: Okay. The objection is overruled. 53 and 54 are received.

(Government's Exhibits 53 and 54 received in evidence.)

MR. ROTH: Let's bring up 54, please.

Q. Special Agent, what is the account number as depicted in Government's 54?

A. 15741155.

Q. And what is the name of the part of the person associated with that account number?

A. Mo David.

Q. If we could please go to Page 2. Do you see there the same account number?

A. Yes, sir.

Q. And you see a gmail address?

A. Yes, sir.

Q. Okay. And the account is zimtheonlyg@gmail?

A. That's correct.

Q. If we can go to Page 3.

Special Agent, do you see a phone number listed with this account?

A. Yes, sir, I do.

Q. What's the phone number for this account?

A. (858) 699-6818.

Q. Whose phone number is that?

A. Nameer Atta's cell phone.

Q. Thank you. If we could please go to 53.

Special Agent, what is in 53?

A. Transaction history between Christian Reed and Nameer Atta.

Q. How does Government's 53 compare with Government's 23, which were the Venmo records that you got from Christian's account?

A. They are the same.

Q. Okay. Thank you. We can take that down.

Special Agent, you've testified that you searched the defendant's phone and found evidence. You've testified that you obtained the defendant's Venmo account and found evidence.

Did you search anything else in your effort to find evidence that may bear on this case?

A. Yes, sir, I did.

Q. And what else did you search?

A. Nameer Atta's Snapchat account.

Q. Okay. Remind me, what is that Snapchat account again?

A. Nameeratta3324.

Q. Okay. If you could please -- this is going to take you a second. But have a look at Government's Exhibits 61 through 80, some of which are -- 61 through 80, and look up when you've had a chance to review them all. Some of these are going to be contained on a disc.

THE COURT: Okay. Mr. Roth, before you get into this line of questioning, we're going to take our 15-minute morning recess at this time.

Ladies and gentlemen, I'm going to remind you of the admonition I've given you before. Please do not discuss the case or form an opinion about the case until it is submitted to you for your deliberations. Also, please do not do any independent research, whether it's on the Internet or otherwise, regarding any of the facts and circumstances having to do with this case.

It is now 25 after. We will reconvene at 20 till 11:00. Again, you are free to use the jury room behind you, but if you do go in the jury room, you're there for the whole duration of the 15 minutes.

Thank you very much for your attention. We'll be in recess.

(Jury absent, 10:27 a.m.)

THE COURT: We are outside the presence of the jury. Counsel is present. Mr. Atta is present.

One of the reasons why I took a break, Mr. Cortez, is I very much appreciate your streamlining your objections and making reference to the in-limine motions. There were some in-limine motions that were discussed extensively, and I am fully cognizant of the objection that you might have to some of those exhibits, but it's a little unclear to me as to your objection to exhibits that have been received. So, for example, 23 and 53 were received, and your objection was "same as before." And I don't believe that those exhibits were discussed during the in-limine process.

So with respect to those exhibits, it's unclear to me, and I treated it as though there were no objection to it, because there is nothing in my memory of the record where you specifically lodged an objection to either the foundation, the content or any other basis for those exhibits.

So I wanted to give you a full opportunity. And the reason I broke is because we've got a whole mess of exhibits that we're about to go into.

MR. CORTEZ: Right.

THE COURT: And if you say "same as before" --

MR. CORTEZ: Yes.

THE COURT: -- I don't -- I'm not sure what you're talking about. And I want to make sure that I give full

consideration to any objection you might have.

MR. CORTEZ: Thank you for asking. 401 and 403.

401, all of this material -- given the indictment and the specific charge in the indictment, all of this material is irrelevant, because it doesn't go to show that on May 20th, 2020, there was a sale of percs to Mr. Reed, No. 1.

And also, connected to that, especially going back two years of drug transactions, that has nothing to do with, and that ties into each one of these. All of these exhibits cannot be just sort of surgically separated from each other, because the jury is going to see them as a group. So that covers 403.

In my in limines, I made an objection to all of this material for both of those reasons. We had -- you reviewed the transcript of Judge Sammartino's hearing to clear up this issue today. I have 401 objections for the reasons I just stated and 403, and that's it.

THE COURT: Okay. I appreciate that. Because there was some records, the Venmo records I wasn't sure if there was a 902(11) certificate or whether there was a stipulation.

MR. CORTEZ: Right.

THE COURT: So I wanted to make sure that I was cognizant of the basis of your objections so that I rule on it properly.

MR. CORTEZ: I got it. Thank you for asking.

THE COURT: I appreciate that.

We'll reconvene at 20 till.

MR. CORTEZ: Thank you.

(Recess, 10:30 a.m. to 10:43 a.m.)

(Jury present, 10:43 a.m.)

THE COURT: Okay. We are back on the record. All of our jurors are present. All counsel are present. Mr. Atta is present.

I will remind you, once again, sir, that you're still under oath.

THE WITNESS: Yes, sir.

THE COURT: Mr. Roth, please continue your examination.

MR. ROTH: Thank you, Your Honor.

Q. Special Agent, before the break, you had examined all of the images that are contained within Government's 61 through 80; correct?

A. Yes, sir.

Q. And as to those particular exhibits, which for the record are Government's Exhibit 61, 62, 64, 65, 69, 71, 72, 73, 74 and 78, 79 and 80, did you review those in the binder?

A. Yes, sir, I did.

Q. Do you recognize them?

A. Yes, sir, I do.
Q. What are they?
A. They are images pulled from the defendant's Snapchat account.
Q. Okay. How do you know that?
A. Because I reviewed the Snapchat account results from -- after the warrant and observed those images.
Q. Are the exhibits that I just read into the record fair and accurate copies of the materials that you saw in defendant's Snapchat account?
A. Yes, sir, they are.
Q. Now, separately, Special Agent, if you could please go to Tab 206.
A. Yes, sir.
Q. What is it, Government's 206?
A. A disc.
Q. And does that disc contain the government's exhibits at -- pardon me, 63, 66, 67, 68, 70, 75, 76 and 77?
A. Yes, sir, they do.
Q. Okay. Are -- how do you know that the exhibits I just read into the record are contained on the disc at Government's 206?
A. Because I reviewed the disc, saw those exhibits. Once I was done reviewing the disc, I signed my name to the disc.
Q. And are the contents of the disc that you just described

fair and accurate copies of the videos you saw in defendant's Snapchat account?

A. Yes, sir, they are.

MR. ROTH: Your Honor, the United States moves to admit Government's 61 through 80.

MR. CORTEZ: Same as before.

THE COURT: Okay. Subject to a relevance showing upon publishing those exhibits, they are conditionally admitted.

MR. ROTH: Thank you, Your Honor.

THE COURT: And so the record is clear --

MR. ROTH: I understand.

THE COURT: -- I'm going to admit 61, 62, 64, 69, 71, 72, 73, 74, 78, 79 and 80, which are the photographs, and on 206, I will conditionally admit 63, 66, 67, 68, 70, 75, 76 and 77.

(Government's Exhibits 61, 62, 64, 69, 71, 72, 73, 74, 78, 79 and 80 received in evidence.)

MR. ROTH: Thank you, Your Honor.

THE COURT: You're welcome.

MR. ROTH: Let's just go through these. If we could please bring up Government's Exhibit 61.

Q. Special Agent, who is that? Do you know who that is?

A. Yes, sir, I do.

Q. Who is that?

A. That is Nameer Atta.
Q. Can you describe the photo.
A. It is a selfie of Nameer Atta.
Q. How do you tell precisely that this is a selfie?
A. Because in the photograph, over Nameer's right shoulder is a mirror, and you can see his reflection where he is holding a phone and taking a photograph.

MR. ROTH: Your Honor, per agreement of the parties, Special Agent Logan has a note just with the date stamps for the exhibits we're discussing, because there is quite a few.

With the Court's permission, may he refer to the note purely for refreshing him as to the dates of these exhibits?

THE COURT: Okay. Without objection, Mr. Cortez?

MR. CORTEZ: No objection.

THE COURT: And those are the dates reflected on the photographs --

MR. CORTEZ: Right.

THE COURT: -- is that correct?

MR. ROTH: Yes, Your Honor.

THE COURT: Okay. Please, go forward.

THE WITNESS: I don't have a copy of it.

MR. ROTH: I think if you open the binder and go to the front slip, you'll see it.

THE WITNESS: Okay.

MR. ROTH: Oh, Your Honor. May I approach?

THE COURT: Yes.

MR. ROTH: Thank you.

Special Agent, I have a copy of your note.

THE WITNESS: Thank you.

MR. ROTH: Thank you, Your Honor.

Q. Special Agent, what's the date associated with Government's 61 in the Snapchat account?

A. April 1st, 2020.

Q. Thank you. And if we can take down 61 and bring up Government's 62.

Special Agent, what's this?

A. Also a selfie of Nameer Atta.

Q. And how can you tell precisely that it's a selfie?

A. Because in the picture, I can see him holding his cell phone.

Q. Okay. What's the date of Government's 62?

A. April 2nd, 2020.

Q. We can take down 62.

And, again, 61, 62 were both in the nameeratta3324 Snapchat account; is that right?

A. That's correct, yes, sir.

Q. Thank you.

Let's please -- forgive me, Your Honor. Would Your Honor like me to lay a more precise information with each of

the videos or just play them?

THE COURT: They have been conditionally admitted. I'm not sure of the contents, so I can't make a Rule 401 finding at this point.

MR. ROTH: Okay.

THE COURT: Play them at your peril. If they do not meet the 401 threshold, then we'll cross that bridge if we come to it.

MR. ROTH: Fair enough. Could we please bring up Government's 63.

Q. And before we do that, Special Agent, what is the date of Government's 63?

A. April 3rd, 2020.

MR. ROTH: If we can please play Government's 63.

(Government's 63 played.)

Q. BY MR. ROTH: Special Agent, who is in the video?

A. Nameer Atta.

Q. Do you recognize the voice of the person who is speaking?

A. Yes, sir, I do.

Q. Whose voice is that?

A. Nameer Atta's voice.

Q. And what did Nameer Atta say in that video?

A. "You're watching the trap channel."

MR. ROTH: Your Honor, move to admit.

MR. CORTEZ: 401 and 403.

THE COURT: Okay. Given the expert testimony elicited as to the term "trap," I find that it meets the 401 threshold and it will be admitted.

MR. ROTH: Thank you, Your Honor.

Just to make a record, we would also offer it for attribution, just to make a record.

MR. CORTEZ: Same objection.

THE COURT: Okay. It's admissible on that basis alone. And I'm not going to go into the 403, but I'm cognizant of 403, and I'm doing that analysis with respect to each and every exhibit offered in this case.

(Government's Exhibit 63 received in evidence.)

MR. ROTH: Thank you, Your Honor. If we can please bring up Government's Exhibit 64.

Q. Special Agent, how does Government's 64 compare to the prior menus that you testified to that you found on the defendant's phone?

A. They are the same.

Q. Okay. And here, remind us what it says with respect to Perc 30s?

A. It is a blue diamond emoji. It says Percs, 30 mg, most trusted out.

Q. Thank you.

Let's take down 63.

THE COURT: Ladies and gentlemen, with respect to Exhibit 63, I give you the same admonition I gave you with respect to Exhibits 42A, B, C and G, in that you are only to consider that exhibit as to the part that was testified about here in court today, and the remainder of that exhibit, it's a copy of another exhibit that I previously gave you the same instruction, is not to be considered for any purpose during your deliberations.

Mr. Roth.

MR. ROTH: Thank you.

Q. Special Agent, if we could please bring up 65.

Special Agent, what is 65?

A. Another menu.

Q. Okay. And what does it say there second from bottom?

A. It's a blue circle with a white M emoji. It says Perc 30s, most trusted in SD, handshake emoji.

Q. How does this version of this menu at 65, which you found on the Snapchat account, differ -- compare to the menu that you found in the defendant's phone?

A. They are the same.

Q. Thank you. We can take down 65.

THE COURT: Before you go on, ladies and gentlemen, with respect to Exhibit 65 as well, the same admonition in terms of the limited purpose for that exhibit applies.

So as to the other, quote, unquote, menu items that

we've discussed, the only thing that you are to consider is the evidence which has been testified to here in court today, and the remainder of the exhibit should not be considered for any purpose whatsoever.

Mr. Roth.

MR. ROTH: Thank you.

Q. Special Agent, before I continue, what date is associated with Government's 63, the first video?

A. It is April 3rd, 2020.

Q. And what are the dates associated with 64 and then with 65?

A. 64 is May -- is, I'm sorry, April 20th, 2020. And then 65 is May 11th, 2020.

Q. Let's go to Government's 66.

What date is associated with Government's 66?

A. I have May 2020.

Q. So it's in May of 2020?

A. Yes, sir.

MR. ROTH: If we can please bring up Government's 66.

(Government's Exhibit 66 played.)

Q. BY MR. ROTH: Special Agent, do you recognize the voice on that video?

A. Yes, sir, I do.

Q. What did the voice say?

A. Trap channel booming. Let's go.
Q. And whose voice is that?
A. Nameer Atta's voice.
Q. Do you recognize the area depicted here in 66?
A. Yes, sir, I do.
Q. What -- where is that?
A. That is the -- that is the area between 9845 Jake Lane and 9835 Jake Lane.
Q. Have we seen that area depicted anywhere else in this case?
A. Yes, sir.
Q. Where have we seen it depicted?
A. It was the red box area on the GPS satellite image.
Q. So there were maps that you found with some writing on them; right?
A. Yes, sir.
Q. And there is a red circle in there?
A. Yes, sir.
Q. And do you recall a notation with the red circle from that exhibit?
A. Yes, sir.
Q. And roughly what did that red circle refer to -- what was the red circle?
A. It was a large order or waiting area.
Q. And this is that red area?

A. Yes, sir.

MR. ROTH: Your Honor, we would move to admit 66.

MR. CORTEZ: Same objections.

THE COURT: The objection is overruled. 66 is received.

(Government's Exhibit 66 received in evidence.)

MR. ROTH: Thank you.

Q. Special Agent, let's go to 67.

Oh, by the way, in 66, forgive me. I couldn't tell if you said that you heard the defendant say "trap channel booming" or "trap temple booming."

MR. CORTEZ: Objection. Asked and answered.

MR. ROTH: I couldn't hear him. So I'm asking to clarify.

MR. CORTEZ: Irrelevant.

THE COURT: Sustained. The jury -- they heard the answer. Their recollection will control.

MR. ROTH: Very good.

Q. 67, what's the date of 67?

A. May 16th, 2020.

Q. Let's please bring up 67.

(Government's Exhibit 67 played.)

Q. BY MR. ROTH: Special Agent, whose voice was that?

A. The defendant's voice.

Q. What did the defendant say?

A. The temple is open.
Q. And what area, if you know, is depicted on Government's 67?
A. That's the area just outside 9845 Jake Lane.
Q. Have we seen the area outside 9845 Jake Lane that's depicted here anywhere else?
A. Yes, sir, we have.
Q. Please explain.
A. It was the white circle area depicted in the satellite map images.
Q. And, you know, as I say that, let's not be mysterious about this. Can we please bring up Government's 49.

Is Government's 67 that was just played, that white area that is in this, Government's 49?

A. Yes, sir. That's the area designated as quick spot.
Q. Okay. And the red area that's designated bigger order/wait, that's the prior exhibit; right?
A. Yes, sir.

MR. ROTH: Thank you. If we can please go back to 67. Your Honor -- Your Honor, we would move to admit 67.

MR. CORTEZ: 401 and cumulative.

THE COURT: Okay. The objection is overruled. 67 is received.

(Government's Exhibit 67 received in evidence.)

Q. BY MR. ROTH: Okay. Let's go to Government's 69.

Special Agent, what is Government's 69?
A. It is a photo of the space between 9835 Jake Lane and 9845 Jake Lane.
Q. What's the date of it?
A. May 9th, 2020.
Q. Okay. If we could please bring up Government's 70. And don't play it yet. I just want to take a look at it. I guess we have to play it.
(Government's Exhibit 70 played.)
Q. BY MR. ROTH: Special Agent, what was the date of Government's 70?
A. April 17th, 2020.
Q. What is depicted in Government's 70?
A. 30-milligram Percocets.
Q. Special Agent, in the course of your career, have you come across 30-milligram Percocets?
A. Yes, sir, I have.
Q. Is that otherwise known as M30s?
A. Yes, sir.
Q. What do they look like?
A. They are blue. They have an M imprinted on one side and the number 30 imprinted on the other.
Q. Okay. Are they circular?
A. Yes, sir.
Q. Is that what is depicted in Government's 70?

A. Yes, sir.
Q. Okay. How many M30s were depicted in Government's 70?
A. 99.
MR. ROTH: Thank you. Your Honor, move to admit 70.
MR. CORTEZ: 401. 403.
THE COURT: The objection is overruled. 70 is received.
(Government's Exhibit 70 received in evidence.)
Q. BY MR. ROTH: If we can please bring up 71.
Special Agent, what are we looking at here?
A. We're looking at a hand-to-hand transaction.
Q. What's the date of this one?
A. April 17th, 2020.
Q. And do you see what is in the baggy that's being handed over in 71?
A. Yes, sir, I do.
Q. Okay. Can you tell what is in the baggy?
A. Perc 30s.
Q. Okay. And do you see any writing on the baggy?
A. Yes, sir. It's -- the script says Walgreens pill pouch.
Q. Okay. If we can now please go to Government's 72.
What is the date of this picture?
A. May 2nd, 2020.

Q. And who is in it?
A. Nameer Atta.
Q. Anything notable about this picture of the defendant?
A. Yes, sir.
Q. What is that?
A. He's holding a Walgreens pill pouch in his hand.
Q. Thank you.

Is that consistent with the Walgreens pill pouch that you saw in the exhibit that we just reviewed?

A. Yes, sir.
Q. Special Agent, if we could please go to Government's Exhibit -- if we can please go to Government's 74.

What's the date of 74?

A. June 24th, 2020.
Q. Okay. Who is this of?
A. Nameer Atta.
Q. And is this a selfie?
A. Yes, sir, it is.
Q. Anything notable about this photograph?
A. Large stacks of cash sitting on the floor in front of him.
Q. Thank you. We can take down.

MR. CORTEZ: Your Honor, just for the record, 401 and 403 again.

THE COURT: Okay. As to 74, the objection is

sustained. 74 is not received in evidence.

Ladies and gentlemen, you are instructed to disregard the photograph just put on the screen. That is Government's 74. You are not to consider that in any way whatsoever during your deliberations in this case.

MR. CORTEZ: Move to strike.

THE COURT: Yes. 74 is stricken. It is not received in evidence.

MR. CORTEZ: Thank you.

Q. BY MR. ROTH: Let's turn to 76. What is the date of Government's Exhibit 76?

A. May 19th, 2020.

MR. ROTH: Okay. Let's please play 76.

(Government's Exhibit 76 played.)

Q. BY MR. ROTH: Now, Special Agent, what area is depicted here?

A. It is the area right outside 9845 Jake Lane, indicated as the quick spot on the map.

Q. Is that the white circle area?

A. Yes, sir.

MR. ROTH: Your Honor, I know that this is conditionally admitted. I need to go to one other exhibit to lay a full basis. It will take one second.

THE COURT: Okay.

Q. BY MR. ROTH: If you can please flip in the binder to

Exhibit 90?

A. 9-0?

MR. ROTH: And I'm sorry I didn't do this before, Your Honor.

Q. Do you recognize Government's Exhibit 90?

A. Yes, sir, I do.

Q. How does Government's 90 relate, if at all, to Government's 76, the video that we just played?

A. 90 is a still image from the video that we just watched.

Q. Okay. What is contained in the still image at 90?

A. A picture of a dark-blue BMW sedan.

Q. Do you recognize the sedan?

A. Yes, sir, I do.

Q. Whose sedan is it?

A. Christian Reed's sedan.

MR. ROTH: Your Honor, the United States moves to admit 76 and 90.

MR. CORTEZ: 401, 403.

THE COURT: Okay. Okay. The objection is overruled. 90 and 76 are received.

(Government's Exhibits 76 and 90 received in evidence.)

MR. ROTH: Let's play 76 one more time, please.

MR. CORTEZ: Objection. Cumulative.

THE COURT: Overruled.

(Government's Exhibit 76 played.)

Q. BY MR. ROTH: Now, let's please bring up 90.

Special Agent, how do you know that that's Christian Reed's BMW?

A. There is damage to the right front bumper.

Q. Can you -- I'm not going to have you draw on the screen because honestly, I struggle to take the notations off. But if you can just explain where on the car it is.

A. If you -- if you look right at the headlight, I'm going to try real hard not to touch the screen, I promise. If you look right at the headlight on the passenger side, if you look just below the headlight, you can see a crease in the right front bumper.

Q. How does that compare to the left bumper on the driver's side, just for reference?

A. The left front bumper is undamaged.

Q. So it appears smooth?

A. Yes, sir.

Q. Okay. Let's go to Government's 77, please. And by the way, I apologize if I already asked, but what was the date of 76?

A. 19 May, 2020.

Q. Okay. So that's -- okay. Let's go to 77 now.

What is the date of 77?

A. May 20th, 2020.

Q. Okay. Can you remind us what the last two dates were that the defendant sold to Christian?

A. May 19th and May 20th, 2020.

MR. ROTH: Okay. Let's please play Government's Exhibit 77.

(Government's Exhibit 77 played.)

Q. BY MR. ROTH: Now, having played that, could we please bring up Government's 78, 79 and 80.

Special Agent, how, if at all, do 78, 79 and 80 relate to the video that's at Government's 77?

A. 77 -- 78, 79 and 80 are still images pulled from 77.

Q. Okay. What is depicted in these four exhibits?

A. Christian Reed driving away from Nameer Atta's house.

MR. ROTH: Your Honor, we move to admit Government's Exhibit 77, which is conditionally admitted, and I believe 78 through 80 are in, but just to be safe, we move them in as well.

MR. CORTEZ: 401, 403.

THE COURT: The objection is overruled. 77 is admitted as well as 78, 79 and 80.

(Government's Exhibits 77 received in evidence.)

MR. ROTH: Thank you, Your Honor.

Q. Special Agent, if we can please go to 77 -- or 78. I'm sorry.

Special Agent, earlier you testified about the dent

in Christian's BMW. Do you see that here?

A. Yes, sir, I do.

Q. Where is it?

MR. CORTEZ: Asked and answered. Objection.

THE COURT: Overruled.

THE WITNESS: It is in the right front bumper, just below the headlight.

Q. BY MR. ROTH: Okay. If we can please go to -- if we can go from here actually to Government's Exhibit 10, which is already in evidence.

Special Agent, do you recall testifying about Government's Exhibit 10?

A. Yes, sir, I do.

Q. And can you just remind us about the T-shirt here.

MR. CORTEZ: Objection. Asked and answered, Your Honor.

THE COURT: Sustained.

Q. BY MR. ROTH: Okay. Having looked at Government's 10, let's go back now to Government's 79.

Special Agent, are you able to see anything about the driver in Government's 79?

A. Yes, sir, I can.

Q. What can you see?

A. He's wearing a gray T-shirt with an orange T on it.

MR. ROTH: Okay. Your Honor, may I have one moment?

THE COURT: Yes.

MR. ROTH: Thank you.

Your Honor, can I just confirm that the photo images between 61 and 80, subject to the Court's ruling to strike, are in.

THE COURT: Yes. All of those are in as previously mentioned, with the exception of 74, which is not in.

MR. ROTH: Okay.

THE COURT: And with respect to the videos, all of the previously conditionally admitted videos are accepted into evidence, with the exception of 68 and 65.

MR. ROTH: Which the government has not offered.

THE COURT: Which the relevance has not been established.

MR. ROTH: Okay. Your Honor, nothing further at this time. Thank you.

THE COURT: Okay. Thank you. Cross-examination.

MR. CORTEZ: We have a quick motion before we do cross. What would you like us to do?

THE COURT: I'll take it up at sidebar.

(The following proceedings were held at sidebar:)

MR. CORTEZ: Out of an abundance of caution, I must move for a mistrial, especially because in the last cumulative picture, Mr. Atta is sitting there with piles of cash showing him like the prolific drug trafficker that Judge

Sammartino had a problem with.

THE COURT: Okay.

MR. CORTEZ: I think I have to make that motion.

THE COURT: Response?

MR. ROTH: Your Honor, we would say that the Court struck the image, gave a curative instruction to the jury. We certainly respect the government -- the Court's decision.

The government offered the photo in good faith. It went to proving the defendant's knowledge that he was selling drugs, because drugs are sold for profit, and that was proof of the defendant's profiting. That's not to ask the Court to reconsider the ruling, but it's just to lay a basis for why we tried to offer it.

It was a single photograph. It was very quickly struck, and I think the Court was quite emphatic in making it clear to the jury that it forms no part of the case.

THE COURT: Okay. The motion for a mistrial is respectfully denied. I did instruct the jury that they are to disregard that photograph. It was only displayed for a very brief period of time, less than five seconds would be my estimation of the time that it was displayed to the jury.

It was a photograph that was taken from some distance. So while there was testimony that there was money, it's not nearly the type of photograph that was otherwise introduced with respect to the GOAT notation that had the

$100 bills and the 420 bills; so I would distinguish between that.

And I would also note that when I instructed the jurors, and every time I've instructed the jurors for their use of the evidence for a limited purpose, each and every one of the jurors are paying close attention to me as I say those things, and the vast majority of the jurors when I struck the photograph that's in question here, most, if not all -- I will stay with most -- of the jurors nodded up and down in acknowledgement of the fact when I instructed them that they were not to consider that photograph in any manner whatsoever.

So I find that it's not an exhibit such that it will unduly prejudice this jury. I feel that -- I feel confident that they will follow the instruction that they were given and the motion for a mistrial is respectfully denied.

MR. CORTEZ: One last comment, briefly.

THE COURT: Yes.

MR. CORTEZ: My last comment is that appellate courts have held that this is the very type of bell that you cannot unring once you ring it. So no curative instruction -- even with jury reacting to the Court, we don't know why they were nodding or not; we didn't ask. And that's it.

THE COURT: Okay. Thank you.

MR. ROTH: Thank you.

MR. CORTEZ: Thank you.

(The following proceedings were held in open court:)

THE COURT: Mr. Cortez, cross-examination.

MR. CORTEZ: Yes, sir. Thank you.

THE COURT: You're welcome.

CROSS-EXAMINATION

BY MR. CORTEZ:

Q. Agent Logan, may I call you Agent Logan?

A. Yes, sir, you can.

Q. Thank you. I actually have very few questions for you, sir.

A. Okay.

Q. Let me begin with your role in this case, your overall role in this case. You are the case agent; correct?

A. Yes, sir.

Q. And from the outset of -- the Naval Criminal Investigative Service, that's who you work with; right?

A. Yes, sir.

Q. NCIS are their initials?

A. Yes, sir.

Q. Okay. Like CSI in the TV shows?

A. Well, the same letters are present, yes, sir.

Q. Only difference?

A. Uh-huh.

Q. "Uh-huh," is that a "yes"?
A. Yes, sir. That's correct.
Q. We're taking a record here.
A. Yes, sir.
Q. She's very diligent. She keeps us in line.
A. Yes, sir.
Q. So as the case agent, you coordinated other agents; correct?
A. At times, yes, sir.
Q. Yes. There were several agents assisting in this investigation; correct?
A. Yes, sir.
Q. And as you coordinated other agents, these other agents helped you gather evidence; correct?
A. That's correct.
Q. Helped you interview suspects; correct?
A. Yes, sir.
Q. Helped you tape-record interviews of other suspects; right?
A. Yes, sir.
Q. Helped you secure what would be described as forensic evidence, sir?
A. Yes, sir.
Q. Okay. Let me take you to -- let me take you to -- if I may have a second. Before I move to that, I'm going to

Exhibit 88 in a minute.

And I just want to ask you whether one of those agents you coordinated with was Robert Dahlstrom, Robert Dahlstrom?

A. Yes, sir.

Q. Thank you.

Now, regarding Exhibit 88, you have that before you, sir?

A. I can go to it, yes, sir.

MR. CORTEZ: Can we pull that up? It might help us. Thank you.

THE WITNESS: Yes, sir.

Q. BY MR. CORTEZ: Exhibit 88 depicts on the lower right hand of the photograph, a bottle of what was described as a prescription medication bottle; correct?

A. Yes, sir.

Q. Now, did you seize that bottle, or did another agent seize it?

A. No one seized that bottle.

Q. I'm sorry?

A. No one seized that bottle.

Q. Who found it?

A. I don't know.

Q. Okay. Was it Agent Dahlstrom?

MR. ROTH: Objection.

MR. CORTEZ: I'm sorry. He was about to answer.

MR. ROTH: I object.

THE COURT: The basis of your objection?

MR. ROTH: Speculation. He said he doesn't know.

THE COURT: Okay. Sustained. Lack of foundation.

MR. CORTEZ: Perfect. Thank you.

Agent Logan -- may I approach, Your Honor?

THE COURT: Of course.

Q. BY MR. CORTEZ: Agent Logan, if I may show you Government's 110. Just look at it to yourself, and I'm going to show you partial.

A. Uh-huh.

Q. This report, sir, that you're looking at, several pages?

A. Yes, sir.

Q. I'm going to -- in the lower left corner, for the record, is the page number series. And I'm only going to refer you to one of those pages, and that would be Page 8 of 12. See the lower left-hand corner?

A. Yes, sir, I do.

Q. And I'm going to show you the date of that agent who collected that photograph.

A. Yes, sir.

Q. That was Robert Dahlstrom; right?

MR. ROTH: Objection. He's asking the witness to

read from a report.

THE COURT: Sustained.

MR. CORTEZ: I'm asking him now.

Q. That was Agent Dahlstrom; correct?

MR. ROTH: Objection.

THE COURT: Sustained. Hearsay.

MR. CORTEZ: That's okay.

Q. Now, this bottle, this prescription bottle, you testified on direct examination yesterday that you knew the contents of that bottle; right?

MR. ROTH: Objection. Misstates the testimony.

MR. CORTEZ: You testified -- sorry. I need to wait for the Court's ruling.

THE COURT: The objection is overruled. You may ask your question.

MR. CORTEZ: Thank you, sir.

Q. Do you remember your testimony just from yesterday afternoon?

A. Yes, sir, I do.

Q. You said that the contents of that bottle were all the exact prescription medication that was supposed to be in that bottle; correct?

A. As I understand it, yes, sir.

Q. But that wasn't true, was it?

A. It was my understanding that that was a true and

accurate statement.

Q. That wasn't my question. It was not true that that prescription bottle contained only the prescribed medication; right?

MR. ROTH: Objection. Foundation.

MR. CORTEZ: I'm asking the question. He can say yes or no.

THE COURT: Overruled. You may answer the question.

THE WITNESS: Can you ask your question again? I'm sorry.

MR. CORTEZ: Yes.

Q. The contents of that prescription bottle were not only the prescribed medication that appeared on the label; correct?

A. That is correct.

Q. Thank you.

And, in fact, what was in that bottle was -- see if this rings a memory for you -- pills of various different sizes and colors located in the prescription bottle?

A. I would have to reference what you're looking at, sir.

MR. CORTEZ: Sure, sir. May I approach again?

THE COURT: Yes.

MR. CORTEZ: This is only for your reference. I just want you to -- sorry. I shouldn't be commenting.

Q. Let me show you -- just for you, sir. Show you right there (indicating).
A. Okay.
Q. Now, that prescription bottle contained pills of various different sizes and colors; correct?
MR. ROTH: Objection. Hearsay.
THE COURT: Sustained.
Q. BY MR. CORTEZ: So you're saying that the contents of that prescription bottle contained only the prescribed medication; is that what you're saying?
A. I'm saying that, as I understand it, in speaking with Special Agent Dahlstrom, the pills contained in that bottle included only pills prescribed to Christian Reed.
Q. Not only the labeled medication; right?
A. Correct.
Q. Correct. In fact, the labeled medication was Pregabalin, if I pronounced that correctly, P-r-e-g-a-b-a-l-i-n. That was on the label, but there were other medications in there; right?
A. According to Special Agent Dahlstrom's report, yes.
Q. Thank you. That's all I wanted to explore.
Now, you didn't find that bottle, did you?
A. No, sir, I did not.
Q. No. In fact, let's tell the jury when you arrived at Christian Reed's barracks.

A. I was not at Christian Reed's barracks.
Q. Oh. Ever?
A. I was -- I was there in August of 2020.
Q. So you were not there in May?
A. No, sir, I was not.
Q. You did not examine the scene?
A. No, sir, I did not.
Q. You did not personally secure any evidence?
A. No, sir, I did not.
Q. So you reviewed other people's reports; correct?
A. Yes, sir, that's correct.
Q. And that's how you testified yesterday and today; right?
A. Yes, sir.
Q. Good enough. Thank you.

We just saw a -- we just saw a photograph of a BMW, and you testified that you could see through the window what type of T-shirt the occupant wore; right?
A. Yes, sir.
Q. But we couldn't see the type of T-shirt that you described as being in that photograph. So do you have independent knowledge as to what type of T-shirt he was wearing?

MR. ROTH: Objection. This is argument.

THE COURT: Sustained.

MR. CORTEZ: I'll withdraw it.

THE COURT: As to what everybody else will see.

MR. CORTEZ: You're right. I withdraw it.

Q. Now, Agent Logan, I have one last question of you. As the case agent, gathering evidence, coordinating everybody else working in this case, did you ever found -- did you ever find the 12 Percocet tablets that you testified were sold by Mr. Atta to Mr. Reed on May 20, sir?

A. No, sir, we did not.

MR. CORTEZ: Thank you. No other questions.

THE COURT: Okay. Thank you. Any Redirect?

MR. ROTH: Very brief.

THE COURT: Okay.

REDIRECT EXAMINATION

BY MR. ROTH:

Q. Special Agent, if we could just make sure we have a clear understanding of this pill situation.

A. Uh-huh. Yes, sir.

Q. What was your understanding of the pills found in Christian's barracks room in May of 2020?

A. All the pills found in Christian's barracks room were pills that were prescribed to him by Navy medical officers.

Q. So is it the case that there is a pill bottle with some different pills, but the agents were able to ascertain that all of the pills had been prescribed to him?

MR. CORTEZ: That's leading, Your Honor. Objection.

THE COURT: Sustained.

MR. CORTEZ: Although at this point --

MR. ROTH: Fair enough.

Q. Special Agent, you were not personally present on May 21st, 2020 for the response by NCIS; right?

A. Yes, sir, that's correct.

Q. Okay. Earlier you testified to the phone that was found in Christian's barracks room; correct?

A. Yes, sir.

Q. Okay. And there was a photograph that counsel has brought up, 88, showing that phone; correct?

A. Yes, sir.

Q. Special Agent, in the course of your work as an agent, do you and fellow agents use something called a chain of custody?

A. Yes, sir, we do.

Q. What is the point of a chain of custody?

MR. CORTEZ: Objection. Goes beyond the cross-examination, sir.

THE COURT: Overruled. You may answer.

THE WITNESS: Chain of custody is -- it allows multiple individuals -- it allows for continuation and accountability for the evidence regardless of who handles it

or where it might go within the NCIS system.

Q. BY MR. ROTH: Is there a chain of custody documented for Christian's phone?

A. Yes, sir.

Q. Is that how you know that the phone that you've introduced today and that you testified over the last two days is the phone that was in Christian's barracks room?

MR. CORTEZ: Your Honor, we'll stipulate to this, if it helps.

THE COURT: Do you accept the stipulation?

MR. ROTH: No.

THE COURT: Okay. You may ask.

THE WITNESS: Could you ask your question again? I'm sorry.

Q. BY MR. ROTH: Is there a chain of custody for Christian's phone?

A. Yes, sir, there is.

Q. And is that how you know that's the phone we've been talking about for the last two days?

A. Yes, sir, it is.

Q. Special Agent, why do you think there were no fentanyl pills recovered?

MR. CORTEZ: Objection. Improper speculation.

THE COURT: Sustained.

MR. ROTH: Nothing further, Your Honor.

THE COURT: Thank you. You may step down, sir.

THE WITNESS: Thank you, sir.

THE COURT: Government's next witness.

MR. ROTH: Your Honor, the United States calls Michael Klinge.

THE CLERK: You can come right up here. Please raise your right hand.

MICHAEL KLINGE, a government witness, having been duly sworn, testified as follows:

THE WITNESS: Yes, ma'am, I do.

THE CLERK: Thank you.

Once you're seated, if you can please state your name and spell it for the record.

THE WITNESS: My name is Michael Klinge, M-i-c-h-a-e-l K-l-i-n-g-e.

MR. ROTH: May I proceed, Your Honor?

THE COURT: Yes. Please.

MR. ROTH: Thank you, Your Honor.

DIRECT EXAMINATION

BY MR. ROTH:

Q. Good morning, sir.

A. Good morning.

Q. Mr. Klinge, what do you do for a living?

A. I'm a special agent with the Naval Criminal Investigative Service.

Q. Is that NCIS?
A. Yes, it is.
Q. How long have you been a NCIS special agent?
A. Since January of this year.
Q. What did you do for work before you joined NCIS?
A. I was a special agent with the Drug Enforcement Administration.
Q. The DEA?
A. Correct.
Q. How long were you a DEA special agent?
A. About 15 years.
Q. So combined, 16 years of federal law enforcement experience?
A. Correct.
Q. Special Agent, where did you go to school?
A. I have a Bachelor's of Science degree in government from the United States Coast Guard Academy and a Master's of Science degree in Terrorism and Counterterrorism.
Q. Did you serve in the Coast Guard after graduating from the academy?
A. Yes, I did.
Q. How long did you serve in the Coast Guard?
A. About six-and-a-half years.
Q. Okay. What kind of work did you do in the Coast Guard?

A. Predominantly law enforcement. I spent two years assigned to a ship where we did law enforcement search and rescue predominantly. I spent two years assigned as the officer in charge of a special operations team. One year of that was dedicated strictly to counter-drug work and the year after that was 9/11, so we transitioned to counterterrorism operations.

Q. Okay. And when you left the Coast Guard, is that when you went to the DEA?

A. Yes.

Q. Did you receive any kind of training when you joined the DEA?

A. I did.

Q. What kind of training did you receive?

A. I went through basic agent training at the Marine Base at Quantico, Virginia.

Q. And what kind of topics were you schooled on at basic agent training?

A. Everything needed to be a DEA agent, so undercover operations, working with informants, surveillance, law, drug identification, use of force; the administrative things that go along with federal law enforcement as well.

Q. Did that training include things like working with confidential informants?

A. Yes, it did.

Q. Did it include trainings on things like debriefing defendants?
A. Yes.
Q. Did it include things like working with and as an undercover?
A. Yes, it did.
Q. Okay. When you joined NCIS, did you get a similar training?
A. Yes, I did.
Q. Did that training cover many of the same topics?
A. In some ways, yes.
Q. Why did you choose to switch from the DEA to NCIS?
A. DEA is a single-mission agency focusing mostly on drug trafficking, and I wanted to broaden my investigative horizon and still be able to stay in Southern California.
Q. Okay. And over the course of your time with NCIS thus far, has any portion of your work been focused on drug trafficking?
A. A majority of it has, yes.
Q. Okay. Now, you've described some formal trainings you've received. Have you received any kind of on-the-job training as a DEA agent and now as an NCIS agent?
A. Yes. Every day seems like an informal training day working with senior NCIS or DEA agents at the time, as well as senior and more experienced local police detectives that

were federally deputized.

And then there were formal trainings as well, in-service trainings in things like financial investigations, telecommunications, exploitation.

Q. Okay. What are the primary investigative techniques that you have used throughout your career?

A. Predominantly physical surveillance, electronic surveillance, which would be wiretaps, essentially, working with informants, cooperating defendants and undercover operations.

Q. Do you draft and execute search warrants as well?

A. Yes.

Q. Okay. Special Agent, you've mentioned informant, confidential informant. What is that?

A. An informant or confidential informant is a non-law enforcement person who has placement and access into criminal organizations and that work on behalf of law enforcement because of their placement and access to -- to basically do criminal activity on our behalf so that we can further our investigations.

Q. So confidential informant is somebody who is not law enforcement?

A. Correct.

Q. That person has a close relationship with some criminal entity or organization or whatever?

A. That's correct.
Q. And they have chosen to work with you as law enforcement to help you investigate the group?
A. Correct.
Q. Okay. Special Agent, you also mentioned undercover. What's that?
A. Undercover is when a law enforcement officer or agent poses as a criminal and/or someone that could facilitate criminal activity in order to basically do the same competence, what we do to further do an investigation.
Q. How many times would you say you've worked with confidential informants?
A. I couldn't put a number on it. Dozens would be a conservative estimate. It's a routine part of what we do.
Q. And have you, yourself, ever worked as an undercover?
A. Yes, I have.
Q. And have you worked with other agents posing as undercovers?
A. Yes.
Q. How many times would you say you've worked as an undercover?
A. Maybe a dozen over the course of my career.
Q. And how many times have you worked with other agents assisting with their undercover work?
A. Again, it would be hard to put a number, but dozens is a

conservative estimate.
Q. Okay. Now, you mentioned wiretaps earlier.
A. Yes.
Q. What is a wiretap?
A. A wiretap is the -- in a traditional sense is listening to other people's phone calls pursuant to court authorization. But it can also extend to text messaging and e-mails, things like that. But predominantly my experience has been telephonic communication.
Q. So wiretap is a discreet or covert ongoing interception of communications platform between one person and anybody else?
A. That's correct.
Q. Okay. How many wiretaps have you participated in?
A. Again, hard to quantify. Well over 25, probably.
Q. Okay. Have you conducted searches of phones seized from people suspected of participating in drug trafficking?
A. Yes, I have.
Q. Have you searched those phones?
A. Yes.
Q. And have you reviewed texts and other forms of communication found on those phones?
A. Yes, I have.
Q. How many times do you think you've done that?
A. Again, hard to say. I think it's a very routine part of

narcotics investigations, so well over -- dozens at least.
Q. Okay. Special Agent, in your view, is it an important part of being a drug agent to understand the ways that drug traffickers communicate with each other?
A. Yes, it is.
Q. Can you explain why?
A. It's part and parcel to what we do. Their communication is what tells the story, and it helps us as law enforcement to be able to be in a position to identify other co-conspirators, to make seizures and to make arrests eventually.
Q. Okay. Is it important to maintain an ongoing understanding of the modes and methods of communication?
A. Yes, it is.
Q. Okay. As a drug agent, is it important for you to maintain an ongoing understanding of the nature of the drug market?
A. Yes.
Q. Why is that?
A. Because the drug market is ever changing, and, you know, in order to enforce drug laws or laws that are sort of engaged to drug trafficking, it's important to understand what's going on in the world.
Q. Okay. Special Agent, have you had any participation as an investigative agent in the matter now before the Court?

A. No, I have not.

MR. ROTH: Okay. Your Honor, the United States offers Special Agent Klinge as an expert in the area of the nature of drug-trafficking communications and the nature of the market pursuant to Rule 702.

THE COURT: Do you wish to voir dire the witness in that regard?

MR. CORTEZ: Not at all. We'll stipulate.

THE COURT: Okay.

MR. CORTEZ: Subject to 401.

THE COURT: Okay. You may proceed pursuant to Rule 702.

MR. ROTH: Thank you, Your Honor.

Q. Special Agent, have you been in the courtroom at any point before appearing now during this trial?

A. No, I have not.

Q. Okay. Special Agent, as part of your work, have you become familiar with the law called the Controlled Substances Act?

A. Yes, I have.

Q. And can you explain how it works.

A. The Controlled Substances Act is a law wherein drugs, controlled substances are -- substances are categorized into one of five categories called schedules, and those schedules, classifications are based on the drugs legitimate accepted

medical use and propensity for addiction and/or abuse.
Q. And so if the drug is scheduled, that restricts or prohibits its lawful distribution?
A. That's correct.
Q. How are the schedules laid out? Are they alphabetized?
A. They are numbered I through V.
Q. Okay. What's on Schedule I?
A. Schedule I is drugs that have a very high propensity for abuse and no legitimately acknowledged medical use in the United States.
Q. Is heroin an example of a Schedule I drug?
A. Yes.
Q. Okay. And by comparison, Schedule V?
A. Schedule V would be a very widely accepted, legitimate medical use in the United States and a very low propensity for addiction or abuse.
Q. So perhaps some forms of cough syrup might be on V?
A. Possibly, yes.
Q. Okay. Have you, in the course of your career, come across a drug called oxycodone?
A. Yes.
Q. What is oxycodone?
A. Oxycodone is an opioid that's traditionally prescribed as a painkiller of some kind.

Q. Is it scheduled?
A. Yes, it is.
Q. What schedule is it on?
A. Schedule II.
Q. Okay. Have you come across a drug or pill known as an M30 pill?
A. Yes, I have.
Q. In its legitimate form, what is an M30 pill?
A. An M30 pill is a 30-milligram oxycodone pill.
Q. What do M30 pills look like?
A. They are blue and round, and they have a 30 on one side and an M either square or box on the other side, stamped into the other side.
Q. And because they are produced by a pharmaceutical company, every one has 30 milligrams of oxycodone?
A. The legitimate ones, that's correct.
Q. Okay. Have you ever heard of Percocet?
A. Yes.
Q. What is Percocet?
A. Percocet is a brand name for oxycodone.
Q. Okay. Have you ever heard of fentanyl?
A. Yes, I have.
Q. What is fentanyl?
A. Fentanyl is an incredibly strong opioid.
Q. What schedule is it on?

A. II.
Q. How does fentanyl compare to heroin?
A. It's exponentially stronger than heroin.
Q. And is fentanyl addictive?
A. Yes.
Q. Correlating to its strength?
A. Correct.
Q. Special Agent, you testified that you keep an ongoing understanding of the nature of the drug market.
A. Yes.
Q. Okay. And in doing so, do you keep up with the various forms that different drugs take?
A. Yes.
Q. In your experience, do drugs change in their form and in their appearance over time?
A. It's possible, yes.
Q. Okay. So, for instance, pills can become -- start to come in different colors?
A. Correct.
Q. Substances that are traditionally solid can start to be seen in liquid form?
A. That's correct as well.
Q. Okay. So let's just have some examples.
Special Agent, classically, what does methamphetamine look like?

A. Classically, methamphetamine is a crystalline substance. In its pure form, it's very clear; looks like shards of glass.

Q. Okay. Classically, what does cocaine look like?

A. It's a white powdery substance that in some light can have some sort of a pearly, in a large quantity a pearly visage, I guess.

Q. Heroin?

A. Heroin can either be a dark brown or black tarry substance or a tan sort of sand-like substance.

Q. Okay. Special Agent, in your experience, does fentanyl, over the last several years, have a sort of classic or expected form?

A. Nowadays, I would say it's almost exclusively seen in pill form.

Q. Okay.

A. Prior to that, it was white powder.

Q. Okay. What is the nature of the pills?

A. Fentanyl pills that I've seen have traditionally looked like the M30 oxycodone pills.

Q. So the form of fentanyl is fake blue M30 pills?

A. Correct.

Q. Thank you.

MR. ROTH: May I have one second?

Special Agent, have you -- couple of questions. I

should have asked this a bit earlier.
Q. But in addition to sort of your focus and experience, do you confer with other seasoned drug investigators?
A. Yes, I do.
Q. And does your understanding of the nature of fentanyl reflect a consensus?
A. Yes.
Q. Okay. Earlier I asked you if all genuine M30 pills were Percocets that come off the line at 30 milligrams of oxycodone. Can the same thing be said about these counterfeit M30s that have fentanyl in them?
A. No, it cannot be said.
Q. Could you elaborate.
A. A legitimate oxycodone pill made in a lab is made under laboratory conditions and regulated in some way, shape or form. Counterfeit pills that contain fentanyl are not made in a lab or by a scientist. They are, you know, put together with fentanyl and various other binding agents to hold -- help them hold their pill form.
Q. Okay. What's --
A. And there is no regulation or rhyme or reason to how much fentanyl is in each pill.
Q. So is it accurate to say that it's kind of a crapshoot when you're -- when it comes to the amount of fentanyl in a counterfeit M30 pill?

A. I would say that's correct, yes.
Q. Okay. Special Agent, I'd like to pivot a little bit.
You mentioned that part of your job, sort of to keep your core competence, is to maintain an understanding of the ways that drug traffickers communicate.
A. That's correct.
Q. Do you have any -- in your experience, do drug traffickers use social media?
A. Yes, they do.
Q. Do you have an understanding of why?
A. It's done in an effort to sort of thwart the investigative efforts of law enforcement. There are ways that they can communicate on social media that are hard or impossible for us to intercept. And then some social media apps have security measures, for lack of a better word, that allow messages to disappear off the phone.
Q. What are some popular social media applications that drug traffickers like to use?
A. Instagram, Snapchat. It's -- there is a ton out there, and so it would be hard to say -- classify all of them. Radiate is a path that I would say. It's not social media, but Snapchat is one I've seen --
Q. Okay.
A. -- often.
Q. Now, in communications over text and social media, et

cetera, fair to say that you've seen the actual language that is used by drug traffickers?

A. Yes.

Q. Okay. Do drug traffickers speak in clear, straightforward sentences when they are talking about their activity?

A. No, they don't.

Q. How do they communicate with each other?

A. They use some form of coded language.

Q. Okay. I'm going to ask you some questions about coded language.

First of all, do you tend to see similar terms used over time with respect to various drugs or aspects of trafficking?

A. Yes.

Q. Okay. Why do traffickers speak in this vague and coded language?

A. Again, it's an effort to thwart detection by law enforcement, parents, military chains of command.

Q. Have you heard or seen this kind of language over those wiretaps that you described?

A. Yes.

Q. Okay. Special Agent, what is one sort of principal way that you can tell you're looking at coded language for drugs?

A. Obviously, depending on the context. And then, you know, some of what they say over this coded language doesn't make sense. So if -- I've seen kilograms of cocaine referred to as shirts or girls, and sometimes someone will order five-and-a-half shirts or five-and-a-half-girls over the wiretap; and it just doesn't make sense.

Q. So let's use that as an example. So shirts. That's a coded term you've heard before used for drugs?

A. Correct.

Q. And it's used in the context, you said, that doesn't make sense.

A. Yes.

Q. Okay. In what sense does it not make sense?

A. It's -- you know, oftentimes the price, you know, $20,000 for a shirt is steep, even in Southern California; nor do you buy half a shirt.

Q. Okay. So for instance, you've seen something like, I want to get five-and-a-half shirts for 20 G's?

A. Yes.

Q. Okay. Are there ever coded terms that refer to a physical aspect of the drug?

A. Yes.

Q. So you mentioned that methamphetamine in its classic form is crystalline shards; right?

A. That's correct.

Q. What are some common coded terms you've heard for meth?
A. Crystal or glass or windows are three of the more common terms.
Q. Shards?
A. Shards as well.
Q. Okay. What about cocaine?
A. Cocaine is white powder, so powder, snow, because snow is white powder, things like that. Blow is just an old term that they used. Coke.
Q. Heroin?
A. Heroin would be H, because heroin starts with an H. Horse is an old name. Hype, because it's injected with a hypodermic needle. Smack is another one as well.
Q. What about fentanyl?
A. Fentanyl is -- fent is popular. Sometimes they call it white as well, because in its powder form, it's a white powder.
Q. What about those pills you described earlier?
A. Those would usually -- even though they are not called -- even though they may not contain OxyContin, they are still called oxys, even though they don't contain oxycodone. Or 30s, or sometimes just pills; or blues, because they are oftentimes blue in color.
Q. Have you heard -- have you ever heard Percocet or any

derivative of Percocet used in this context?
A. Yes.
Q. Okay. What have you heard?
A. Traditionally just percs is usually what I've seen.
Q. Okay. Now, younger generation, social media is big these days. Do drug traffickers use only the written word when engaged in this coding language?
A. No, they don't.
Q. What is another means that they use to communicate?
A. They use emojis.
Q. Okay. And what is an emoji?
A. An emoji is a picture that is sort of pre-programmed or obtained on your phone that can be used as shorthand basically for a word or phrase.
Q. Can you give an example of an emoji you use in your own life?
A. So my daughter said she had a biology test tomorrow, and I sent a four-leaf clover emoji to wish her good luck.
Q. Okay. How do drug traffickers use emojis when communicating?
A. It's just another form of coded language.
Q. Have you seen emojis used to reflect different drugs in the same way that coded terms do?
A. Yes, I have.
Q. So what is an example you've seen of an emoji for

cocaine?

A. Snowflake.

Q. Okay. What about for heroin?

A. Either needle or a horse, as I said before. Horse is for heroin.

Q. Have you seen personally any emojis referring to M30 pills?

A. Just usually there is a pill emoji, either a tablet or a capsule, or with the number 30.

MR. ROTH: One moment, Your Honor.

THE COURT: Yes.

MR. ROTH: Thank you.

MR. ROTH: Nothing further, Your Honor. Thank you.

THE COURT: Okay. Thank you.

Cross-examination?

MR. CORTEZ: Surprisingly, Agent, I have absolutely no questions for you. Thank you.

THE WITNESS: Thank you.

THE COURT: Okay. Thank you. You may step down, sir.

THE WITNESS: Thank you.

MR. ROTH: The United States rests.

THE COURT: Okay. Ladies and gentlemen, that concludes the presentation of the government's case-in-chief,

so the evidence that the government intends to present for your consideration has come to a close.

As I mentioned earlier, the defense has an opportunity to present any evidence, if they choose to do so. At no time does the defense have to present any evidence. So they will make that decision, but they will make that decision during our lunch break.

So we are going to take our one-hour lunch break at this time. And it is quarter till 12:00. I ask that you be back at quarter to 1:00 for the resume -- at which time we will resume the presentation of evidence, if the defense chooses to do so.

I would remind you of the admonition not to discuss the case or form an opinion about the case and not to do any independent research about anything having to do with the case, whether it be on the Internet, consulting written materials or anything of that nature.

So I wish you all a very good lunch break. We'll see you back in one hour's time. Again, you can leave your notebook on your chair. No one will have access to them. If you do go into the jury room, if you brought your lunch and you used the refrigerator, you will have to remain in the jury room during the entire one-hour time period.

If not, please enjoy your lunch and the facilities outside the courthouse, and we'll see you back. Thank you.

(Jury absent, 11:46 a.m.)

THE COURT: We are still on the record.

We are outside the presence of the jury. All counsel are present. Mr. Atta is present.

A couple of housekeeping matters. I provided the parties with a written copy of the verdict form. A copy has also been e-mailed to you is my understanding.

Also, with respect to the jury instructions, I believe a copy has also been e-mailed to you, and the final version of the instructions has also been filed on the ECF system.

So with those housekeeping matters, is there anything else that we need to address before we break for lunch?

MR. CORTEZ: Yes. I'll renew my motion for mistrial, and I'll make my Rule 29.

THE COURT: Okay. Is the mistrial motion any different from what has already been discussed at sidebar?

MR. CORTEZ: It adds the over two years of drug ledgers that have nothing to do with this, and they relate to the warning about getting into the prolific drug-trafficker characterization.

THE COURT: Okay.

MR. CORTEZ: That's -- and everything else.

THE COURT: Okay. With respect to --

MR. CORTEZ: It's a general -- I'm sorry. It's a general Rule 29.

THE COURT: Okay. I understand the general Rule 29, but the specific that you raised, that is, the drug ledger, that was marked for identification as Government's Exhibit No. 45. It was not received into evidence. What was received into evidence was the 1006 summary as it pertains to Mr. Atta.

Have I correctly characterized the exhibit that was received?

MR. ROTH: Yes.

MR. CORTEZ: Yes. But the jury was told the number of those things, so that's for my mistrial motion.

THE COURT: Okay.

MR. CORTEZ: I don't want to blend rule -- I want to keep Rule 29 over here. General Rule 29.

THE COURT: Let's address the mistrial motion.

With respect to the testimony, I believe it was testimony that it was approximately 200 pages long. And with regard to that, I find that it is relevant, in that it reflects that Mr. Atta kept very detailed records as to his activities selling items.

And in that respect, I believe it sheds light on his knowledge and intent to sell specific controlled substances. And I believe that's also reflected in the exhibit that was

received -- and refresh my recollection as to the exhibit, the 1006.

MR. ROTH: 46, your Honor.

THE COURT: -- in 46.

And it reflects the quantity of the controlled substance, the type of controlled substance, and it marries it up with the exhibits that were received; that is, the menu items that were received. So it ties together those. And I think it substantiates the Rule 401 analysis as to why those menus were properly received into evidence with the appropriate limiting instruction that I gave.

MR. CORTEZ: And with the Court's comments and explanation, my comment for the record would be those combinations, the interrelationship, all of that evidence, exacerbates the 403 prejudicial effect.

THE COURT: Okay. Your objection is noted for the record. I stand on the rulings that have been made so far. I believe that they are appropriate under the circumstances.

And, again, without getting into the specific details, with regard to any exhibit that has been offered, not only am I doing the Rule 401 and any other required analysis as to the foundation, I am also very cognizant of Rule 403 and have performed that analysis with respect to any exhibit that's been received into evidence so far in this trial.

MR. CORTEZ: Thank you.

THE COURT: As to the general Rule 29, does the government wish to be heard?

MR. ROTH: Yes, Your Honor. Thank you. If I may, Your Honor, just to make a brief record.

The United States showed the summary chart to counsel in an e-mail before trial, didn't receive confirmation that it could come in; so we had to lay foundation to put it in. So I would add that we needed to show it was a voluminous record to justify a summary chart.

THE COURT: Okay. I believe that's also appropriate.

Mr. Cortez, do you have any comment in that regard?

MR. CORTEZ: No more comment. I've said enough.

THE COURT: Okay.

MR. ROTH: Thank you, Your Honor.

As to Rule 29, the government has offered overwhelming evidence of guilt, certainly sufficient guilt -- certainly sufficient evidence to put this case to the jury. Our burden is to show a knowing distribution of fentanyl. We have done that overwhelmingly, including through the exhibit at 46 that Your Honor referenced.

We have to show that the defendant understood it was fentanyl or some other controlled substance. Again, we have made that showing in fairly overwhelming fashion, I believe.

And we have to prove that the distribution of the fentanyl was the but-for cause of Christian Reed's death.

Among other things, this Court took testimony from Dr. Bryan Platt, the medical examiner, who testified unequivocally, and I think comprehensively, that it was a fentanyl overdose that killed Christian Reed.

Thank you.

THE COURT: Viewing the evidence in the light most favorable to the government, which I'm required to do so at this stage of the proceeding, I find that there is sufficient evidence in the record to find that a reasonable jury could find that the government has met its burden with respect to the three elements as to the offense charged, and the motion is respectfully denied.

MR. CORTEZ: Thank you, sir.

And I will notify -- I will know for sure about a case we may or may not have before 1:30.

THE COURT: Okay. If --

MR. CORTEZ: Actually, what time are we back here?

THE COURT: Quarter to 1:00, so 12:45.

MR. CORTEZ: Okay. I will know -- I'll let you all know by then.

THE COURT: Okay. Mr. Cortez, what I would ask that you do -- if you choose not to present any evidence, I would ask you to rest in front of the jury so that it's clear to

them that you have made that decision with respect to the presentation of evidence. And we'll go right into jury instructions if you choose not to present any evidence.

MR. CORTEZ: And then closings?

THE COURT: And then closing.

MR. CORTEZ: Very good. Thank you.

THE COURT: Thank you all very much.

(Recess, 11:53 a.m. to 12:50 p.m.)

(Jury present, 12:52 p.m.)

THE COURT: Okay. Good afternoon. Welcome back. All of our jurors are present. All counsel are present, Mr. Atta is present.

Mr. Cortez, do you wish to call any witnesses?

MR. CORTEZ: Oh, sorry, Your Honor. No, we do not. We rest.

THE COURT: Okay. Ladies and gentlemen, that concludes the presentation of evidence in this case, and the case will now be submitted to you for your consideration.

But before we do that, I have to read you the jury instructions that will govern your deliberations in this case. Again, I remind you that you have a written copy of all of these instructions, so I notice that some of you have been diligently taking notes during the course of the testimony. You need not take any notes during the jury instruction portion of this, because you will have a written

version of these very same instructions.

Following the instructions, the attorneys will have an opportunity to give their closing arguments to you. The government will go first. The defense will go next, and the government will have an opportunity to offer a rebuttal argument. And following the argument, I have a few closing instructions as to the logistics of how you should conduct your deliberations. So that's our schedule for this afternoon.

And, again, ladies and gentlemen, I ask for your indulgence. Again, I'm reading these instructions to you, so I apologize for not maintaining eye contact with you as we go through these instructions.

Members of the jury, now that you have heard all the evidence, it is my duty to instruct you on the law that applies to this case. A copy of these instructions will be available in the jury room for you to consult. It is your duty to weigh and to evaluate all the evidence received in the case, and if you can do so, to decide the facts. It is also your duty to apply the law as I give it to you to the facts as you find them, whether you agree with the law or not.

You must decide the case solely on the evidence and the law. You will recall that you took an oath promising to do so at the beginning of the case. You should also not be

influenced by any person's race, color, religious beliefs, national ancestry, sexual orientation, gender identity, gender or economic circumstances.

Also, do not allow yourself to be influenced by personal likes or dislikes, sympathy, prejudice, fear, public opinion or biases, including unconscious biases. Unconscious biases are stereotypes, attitudes or preferences that people may consciously reject but may be expressed without conscientious awareness, control or intention.

You must follow all of these instructions and not single out some and ignore others. They are all important. Please do not read into these instructions or into anything I may have said or done as any suggestion as to what your verdict should be. That is a matter entirely up to you.

The indictment is not evidence. The defendant has pleaded not guilty to the charge. The defendant is presumed to be innocent, unless and until the government proves the defendant guilty beyond a reasonable doubt. In addition, the defendant does not have to testify or present any evidence. The defendant does not have to prove innocence. The government has the burden of proving every element of the charge beyond a reasonable doubt.

A defendant in a criminal case has a constitutional right not to testify. In arriving at your verdict, the law prohibits you from considering in any manner that the

defendant did not testify.

Proof beyond a reasonable doubt is proof that leaves you firmly convinced the defendant is guilty. It is not required that the government prove guilt beyond all possible doubt. A reasonable doubt is a doubt based upon reason and common sense and is not based purely on speculation. It may arise from a careful and impartial consideration of all the evidence, or from lack of evidence.

If, after a careful and impartial consideration of all the evidence, you are not convinced beyond a reasonable doubt that the defendant is guilty, it is your duty to find the defendant not guilty. On the other hand, if, after a careful and impartial consideration of all the evidence, you are convinced beyond a reasonable doubt that the defendant is guilty, it is your duty to find the defendant guilty.

The evidence you are to consider in deciding what the facts are consists of: First, the sworn testimony of any witness. Second, the exhibits received in evidence. And, third, any facts to which the parties have agreed.

In reaching your verdict, you may consider only the evidence and testimony received into evidence. The following things are not evidence, and you may not consider them in deciding what the facts are:

Questions, statements, objections and arguments by the lawyers are not evidence. The lawyers are not witnesses.

Although you must consider a lawyer's questions to understand the answers of a witness, the lawyers' questions are not evidence.

Similarly, what the lawyers have said in their opening statements, will say in their closing arguments, and have said at other times is intended to help you interpret the evidence, but it is not evidence. If the facts as you remember them differ from the way the lawyers state them, your memory of them controls.

Any testimony that I have excluded, stricken or instructed you to disregard is not evidence. In addition, some evidence was received only for a limited purpose. When I have instructed you to consider certain evidence in a limited way, you must do so.

Anything you may have seen or heard when the court was not in session is not evidence. You are to decide the case solely on the evidence received at the trial.

Evidence may be direct or circumstantial. Direct evidence is direct proof of a fact, such as testimony by a witness about what that witness personally saw or heard or did. Circumstantial evidence is indirect evidence, that is, it is proof of one or more facts from which you can find another fact.

You are to consider both direct and circumstantial evidence. Either can be used to prove any fact. The law

makes no distinction between the weight to be given to either direct or circumstantial evidence. It is for you to decide how much weight to give any evidence.

In deciding the facts in this case, you may have to decide which testimony to believe and which testimony not to believe. You may believe everything a witness says, or part of it or none of it.

In considering the testimony of any witness, you may take into account the following: First, the opportunity and ability of the witness to see or hear or know the things testified to; second, the witness' memory; third, the witness' manner while testifying; fourth, the witness' interest in the outcome of the case, if any; fifth, the witness' bias or prejudice, if any; sixth, whether other evidence contradicted the witness' testimony; seventh, the reasonableness of the witness' testimony, in light of all the evidence; and, eight, any other factors that bear on believability.

Sometimes a witness may say something that is not consistent with something else he or she said. Sometimes different witnesses will give different versions of what happened. People often forget things or make mistakes in what they remember.

Also, two people may see the same event but remember it differently. You may consider these differences, but do

not decide the testimony is untrue just because it differs from other testimony. However, if you decide that a witness has deliberately testified untruthfully about something important, you may choose not to believe anything that witness said.

On the other hand, if you think the witness testified untruthfully about some things but told the truth about others, you may accept the part you think is true and ignore the rest.

The weight of the evidence as to a fact does not necessarily depend on the number of witnesses who testify. What is important is how believable the witnesses were and how much weight you think their testimony deserves.

You are here only to determine whether the defendant is guilty or not guilty of the charge in the indictment. The defendant is not on trial for any conduct or offense not charged in the indictment.

The defendant is charged in the indictment with distribution of fentanyl resulting in the death of another, that is, C.M.R., in violation of Sections 841(a)(1) and (b)(1)(C) of Title 21 of the United States Code.

In order for the defendant to be found guilty of that charge, the government must prove each of the following elements beyond a reasonable doubt:

First, the defendant knowingly distributed fentanyl.

Second, the defendant knew that it was fentanyl or some other federally controlled substance. And, third, the use of the fentanyl distributed by the defendant resulted in the death of C.M.R.

The word "distributed" means delivering or transferring possession of the fentanyl to another person with or without any financial interest in that transaction. The government is not required to prove the amount or quantity of fentanyl distributed. It need only prove beyond a reasonable doubt that there was a measurable or detectable amount of fentanyl.

The phrase "resulted in death" means that C.M.R.'s use of the fentanyl distributed by the defendant was the cause of his death. In that regard, the government must prove beyond a reasonable doubt that but for C.M.R.'s use of the distributed fentanyl, he would not have died. The government need not prove that C.M.R.'s death was a foreseeable result of the fentanyl distribution or that the defendant knew or should have known that the distributed fentanyl would cause his death.

Additionally, the level of care administered to C.M.R. by the first responders, whether it was medically appropriate or whether it fell below an ordinary standard of care, is not a relevant consideration as to whether the fentanyl distributed by the defendant was the cause, in fact,

of C.M.R.'s death.

The crime of distribution of fentanyl resulting in death includes the lesser crime of distribution of fentanyl. If, one, all of you are not convinced beyond a reasonable doubt that the defendant is guilty of distribution of fentanyl resulting in death, and, two, all of you are convinced beyond a reasonable doubt that the defendant is guilty of the lesser crime of distribution of fentanyl, you may find the defendant guilty of distribution of fentanyl.

For the defendant to be found guilty of the lesser crime of distribution of fentanyl, the government must prove each of the following elements beyond a reasonable doubt:

First, the defendant knowingly distributed fentanyl. And second, the defendant knew that it was fentanyl or some other federally controlled substance.

"Distributing" means delivering or transferring possession of fentanyl or some other federally controlled substance to another person with or without financial interest in that transaction.

The government is not required to prove the amount or quantity of fentanyl or other federally controlled substance. It need only prove beyond a reasonable doubt that there was a measurable or detectable amount of the substance.

The indictment charges that the offense alleged was committed on or about a certain date. Although it is

necessary for the government to prove beyond a reasonable doubt that the offense was committed on a date reasonably near the date alleged in the indictment, it is not necessary for the government to prove that the offense was committed precisely on the date charged.

Ladies and gentlemen, that concludes the preliminary set of jury instructions that will govern your deliberations. Again, I have some final instructions that concern the logistics of your deliberations following the closing arguments of the attorneys in the case.

Is the government prepared to go forward with your closing argument?

MR. ROTH: We are, Your Honor. If we may just have a moment to set up?

THE COURT: Yes.

MR. ROTH: Thank you.

Can you all hear me? Okay.

Your Honor.

THE COURT: Please, go ahead.

MR. ROTH: Thank you. Good afternoon, ladies and gentlemen.

Christian Reed died the day after his 26th birthday. He died on the floor of his barracks room at Miramar. He died from drugs sold to him by his dealer, the defendant.

You have now seen all of the evidence in this case,

and it all fits together in a neatly, overlapping, collaborative, corroborative way, showing to you in an overwhelming fashion that this man (indicating) sold drugs to Christian Reed, controlled substances, that resulted in Christian's death. He is guilty of the charge in the indictment.

And, of course, my clicker stops working.

The charge in this case, as Judge Robinson explained to you, breaks down into elements. There are three, and they are straightforward. Our obligation is to prove them to you beyond a reasonable doubt. We're just going to go through them together, and then we're going to walk through this evidence in a calm, objective, methodical fashion.

The first element is that the defendant knowingly distributed fentanyl. The second is that he knew -- this is important -- that it was fentanyl or some other controlled substance. And, third, that the distribution of fentanyl by the defendant was the cause of Christian's death.

Let's talk about this element. What does it mean for us to prove that the defendant knowingly distributed fentanyl? Straightforward. It wasn't an accident. It wasn't a scenario in which the defendant generally believed he was giving something else to Christian and it turned out to be drugs. It's that he was making a purposeful distribution to Christian.

Second, that he knew it was fentanyl or some other controlled substance, which is a fancy way of saying he knew it's a controlled substance. What does it mean? It means that he knows it's a drug, and, separately, that the drug is on the controlled substances schedules that you heard about.

Every iteration of the drugs at issue in this case is a controlled substance. Fentanyl is a controlled substance. Oxycodone is a controlled substance. Percocet is just a brand name for oxycodone. M30 pills are oxycodone, and in the counterfeit form, fentanyl.

We have proven to you -- and we're going to go through this -- that he knew it was fentanyl, but even if one of you thinks that maybe he thought it was really Percocet, it does not matter. It's a controlled substance. And the element is he knew it was a controlled substance.

And third, that the use of the fentanyl was the but for cause of death. Now, "but for" sounds like legal terminology. It's pretty simple. It's our burden to show that it was the fentanyl that did it, that there were no other contributing factors to the death, that it was fentanyl plus something else. It was the drugs. That's what this third element is about.

You heard some testimony in cross-examination about Narcan, constricted pupils, things like that. Irrelevant. Does not matter. How the first responders responded -- and I

submit to you there is evidence that they responded competently, professionally, admirably, but the nature of their attempt to intervene in the emergency initiated by this man's drugs does not matter. So all of that is a red herring. You should ignore it.

Let's start with that first element, knowing distribution. How do you know that the defendant purposefully gave drugs to Christian?

Let's start with Christian himself. Here he is. He was a Marine. Got these photos of him in his dress blues and his fatigues. And important and remember this photo, ladies and gentlemen, here he is in his Tennessee Volunteer T-shirt. It's from the day on or before his death.

Here is the photo from his phone of his distinctive BMW, which he damaged the front right fender. Remember the testimony of his friend, Austin Ritter, which was stipulated to, and you can credit that. He knew Christian; Christian was his friend. He knew Christian drove a dark BMW sedan with damage to the front fender. This is Christian's car.

Here is Christian's phone that you heard so much about. There is the first set of messages between Christian and the defendant over Snapchat. And what does he say to him? To begin the relationship, the selling relationship, verify yourself.

Why would a person need Christian to verify himself?

Because he's dealing Christian drugs. Drug dealers don't want to get caught. Drug dealers don't want to sell drugs to undercover agents. Drug dealers don't want to sell to confidential informants. Drug dealers don't want to sell to people who are going to get them in trouble.

So what's the first thing you do? Tell me who referred you. Are you cool? Are you trustworthy? Can I sell to you and it's going to be okay? Verify yourself. From the beginning. That's how this whole thing starts. Asks him for the area where am I going to deliver. And what does Christian respond, by the way? Miramar.

And by the way, who's nameeratta3324, communicating with Christian over those Snaps that we saw over Christian's phone?

Ms. Douglas, if you would.

(Video played.)

MR. ROTH: The purveyor of the trap channel, verifying that this is his account. Here are photos again that you saw in the defendant's own Snapchat account.

And here, again, are the 43 communications between Christian and the defendant in April and May of 2020 offering percs for sale, prices, meeting locations, amounts, confirmations. Sale after sale after sale after sale. Fifteen of them.

Summarized for you in the summary chart that's

admitted into evidence for you as Exhibit 46. Pay close attention to this chart. Blue diamonds. You saw for yourself what those are. Perc 30s, fentanyl. Sale after sale after sale.

The defendant sold Christian 57 pills, 57 fentanyl pills over six weeks. He made $1800 off of him. And as you heard, every single one of those pills, who knows what's in them. You're playing Russian roulette when you take a fentanyl pill, ladies and gentlemen. Special Agent Klinge told you, there is no way to know what is actually in them, how much fentanyl is in them.

The Venmo transactions that you saw corroborating the transactions in the ledger and in those communications. You see right there, four notations for partial payments by Christian over Venmo. You have the Venmo records yourselves. Go ahead and study them. It all matches.

The defendant sold Christian OC, oxycodone. Christian referred to him as his plug, his G. He's his dealer. That's what this relationship is. That's what it is. He's his dealer. He sold him fentanyl pills and Christian got unlucky at the end, died from one of them. That's all this case is.

You saw this map in Christian's phone, further corroboration that he is the one who sold him these pills. Here is the map. We know that that's the defendant's home

because Special Agent Logan explained to you he did surveillance there, he executed a search there.

Here is the same map from the defendant's side of the line. It's annotated. You see that red circle and that white circle that we're going to come back to. This is the spot. This is the trap. This is the temple, the trap temple. It's all the same thing. This is where you go to get sold fentanyl pills by the defendant.

If you would please play the video on the left and then on the right.

(Video played.)

MR. ROTH: That's the red area on the map.

(Video played.)

MR. ROTH: That's the white area on the map. The temple is open. Come get your fentanyl.

And, of course, the final sales, the sales that all but certainly are of the specific pills that killed Christian. May 19th, two different sales of three different pills. May 20th, the day before death, 12 pills for 300 bucks. Documented for you right there uncontroverted. In Snapchat on Christian's phone. By video, by summary ledger, by Venmo transaction, by map, by video.

Here is May 19th. You saw Exhibit 90. There is the BMW with the distinctive dent. There is Christian getting sold drugs.

Let's play this, please.

(Video played.)

MR. ROTH: That's the white area on that map.

May 20th, the final sales. This is a little bit hard to see, but I encourage you to take some time with these images. You see on the right Christian in his Tennessee Volunteers T-shirt.

You see on the left, this is a still shot from May 20th, the video that this defendant posted to his Snap account. And if you look carefully, look beneath the windshield, and you can see just the thin outline, it's bisected by the seat belt. You can see the orange T. You see it coming across both sides of the seat belt and a piece of it poking out underneath the belt. It's right there. That's Christian. Of course, again, the BMW with the dent. And there it is from Christian's phone.

Please play this.

(Video played.)

MR. ROTH: May 20th, the final sale. That video, Christian driving away to die with pills that man sold him.

Christian had no other Snaps to set up any other deals. Christian had no other payments for drugs to any other person. Christian had no other locations notated to go get drugs. Christian had no other need. He's got a plug. There is no other dealer.

This defendant had Christian verify himself, used Snapchat to set up the transactions, over 43 exchanges for 15 deals, provided the location for Christian to come get the pills, sold him 57 Perc 30s over six weeks, profited $1800, accepted online payments and sold to Christian at the booming temple, filming and posting to Snapchat for all to see the final sales. That man sold the pills to Christian that killed him, him and only him.

Let's go now to the death part. This was an overdose, period. Aaron Balderson explained to you how he ran to assist, even though he was not on duty as an EMT or even working as one. But he had training, a Marine was in distress. He ran to help him, and he immediately started resuscitations.

Keith Naylor, the paramedic you heard from. He testified about his 20 years of experience and his training and his expertise administering aid as a paramedic. He talked about how they pushed epinephrine to try to get a heartbeat, how they asked the hospital to use Narcan. Not the hospital directing them to use Narcan. They thought that they should use it. They requested it.

And he had no pulse, no breath. Keeping in mind, folks, there was a lot of questions of these two gentlemen and some insinuations that somehow this was on them. They don't care why Christian Reed is not breathing. They want

him to start breathing. They don't care why his heart stopped. They want his heart to start.

That makes perfect sense. If any of you have had a -- in your own common, life experience or just from common sense, because you're in the medical field, if the heart is not beating, there is no point to worry about anything else. That's their focus.

And here they are doing their best to resuscitate Christian. Christian, who is not breathing when they find him. Christian, who has turned purple. Christian, who has no pulse. Christian, who is gurgling. These guys did their best. But I submit to you, ladies and gentlemen, there is evidence for you to find that Christian was gone by the time they got there. There was nothing anybody was going to be able to do that day.

Now, you also heard from Dr. Platt. And I want to pause here, because the government's evidence on this point is testimony. We don't have a lot of -- we don't have documents that we put in front of you on this point. We offered you the testimony of Balderson, Naylor and Dr. Platt.

So let's talk about how you evaluate witness credibility. It's common sense. It's how you judge people in your daily lives. It's how you decide whether the person that is in front of you is honest, credible, trustworthy, worthy of your time and respect.

How did they appear on the stand? I submit to you Dr. Platt and Naylor and Balderson were honest. They were the same person on cross-examination and direct. All three of them sought to just give information without bias or prejudice. Their tone was the same. The content of their answers was the same. Their flow was the same. Their clear efforts to provide responsive information to both sides was the same. Their interest in the outcome. They're medical professionals; right.

You could consider whether Special Agent Logan has an interest in the outcome, he's the case agent, obviously. But these three, they don't have that. They are just there to tell you the story of what happened, and in the case of Dr. Platt, to offer you learned testimony explaining to you the nature of the death.

Now, additionally with Dr. Platt, he testified to you pretty directly on the basis of his experience and his expertise as a doctor. So consider in evaluating his credibility and the weight you accord his testimony, whether or not he's a credible guy, he knows what he's talking about.

He works in the Armed Forces Medical Examiner system. He has a BS in chemistry. He has an MD from Temple University. He had an internship in family practice. He did a clinical pathology residency at Walter Reed. He entered a forensic pathology fellowship with the office of the chief

medical examiner for the military.

This is an experienced person. He's been doing this for years. He holds I think deputy director of the office that he works in. He's done, I think he said, 135 autopsies with the Armed Forces and before that, 201. He's done over 300 of these. This is a trained, experienced professional, who gave unbiased, objective testimony, just explaining what happened to Christian.

He conducted -- and he did a good job. He did the autopsy. He examined Christian's entire body and his brain. He had toxicology work done on the fluids in the body. He reviewed Christian's medical records looking for clues to explain what happened to this 26-year-old Marine. And he completed -- importantly, he completed the review after he got the toxicology report. I submit to you that's a big deal.

He have could have gotten the tox report, seen all that fentanyl, and said, okay, that's it. But he knew there were issues that a review of the brain would either complicate matters or confirm them. So he completed the work even after he had the clear evidence from the tox screen that this was an overdose.

What's his opinion? Christian died of an overdose. That's what acute fentanyl intoxication is. That's what he said. He found no evidence of any other material issue.

There was a thought that Christian had had a stroke, called this from the prior month, April of '20. But as Dr. Platt explained, if there had been a stroke, you'd see evidence of it in the brain. You'd see soft matter, or blood. None. There was no stroke. It's a red herring. If you hear about it in closing, go to, that's irrelevant. There was no stroke.

No evidence of lingering vasculitis, if vasculitis had ever occurred. Vasculitis, which he explained to you, is the inflammation of the vessels in the brain. The brain was healthy.

No evidence of -- he talks about rhabdomyolysis, the weakness in the arm. No evidence of that. No injury in the body, no injury to the organs, to the muscles. Christian was a healthy, 26-year-old man. What caused the death? Fentanyl.

He saw evidence in the body, separate from the tox screen, consistent with an overdose. He explained to you that when a person overdoses, their lungs fill with fluid and you can usually tell they are about twice as heavy. That's where Christian's lungs were. He reviewed the toxicology report, and he explained to you that there was a fentanyl concentration in the blood consistent with acceptable ranges in overdose death cases.

He noted for you that there were metabolites,

norfentanyl and 4-ANPP. Metabolites, evidence that the body is breaking down and metabolizing fentanyl at the time of death. Ladies and gentlemen, where did that fentanyl come from? The defendant sold these pills to Christian on April 17th and 30th, on May 1st, 3rd, 6th, 7th, 10th, 11th twice, 13th, 15th twice, 18th, 19th and 20th. Twelve pills on the twentieth.

He's metabolizing fentanyl because this guy has sold him the pills with the fentanyl in them and he's taking them. Metabolites are evidence of the pills that that man sold Christian. Nothing less. Nothing more.

And, of course, the presence of cutting agents, confirming there is no legitimate fentanyl in Christian's body. This was not administered by a hospital. The cutting agents are the bread and eggs holding together the fentanyl in the pill. Cutting agents are proof that it's a pill, an M30 pill.

And you heard those cutting agents, he knew they were cutting agents. He had a logical explanation. You use it in animals, and you haven't been able to get it in the U.S. for the last 50 years. So that's not a legitimate medical product that was in Christian's body together with the fentanyl.

He also was aware and considered the other medicines that Christian had been prescribed, and, consistent with

prescriptions, were in Christian's body. There was a pill bottle in Christian's room with some pills in it. There were prescriptions for Christian. The prescriptions were in the tox screen. He considered those and he explained to you that didn't have anything to do with it.

Importantly, you didn't hear any evidence to the contrary; right. On cross-examination, there was some skeptical questions, well, what about these pills? But you didn't hear from any defense expert to rebut the proof that these other drugs were relevant. No documents to suggest otherwise. No witness that can conceive a way to suggest otherwise. The only evidence in the record for you to consider is Dr. Platt's undisputed testimony that the other drugs were irrelevant.

Fentanyl and the cutting agents, the amount of fentanyl in the accepted range. No other cause. And, of course, it's consistent with the overall factors that you saw. Christian was nonresponsive when he was found. Christian had no heartbeat. Christian wasn't breathing. Christian had no other injuries. Christian had no stroke, no vasculitis, no other injury to the body. A recognized level of fentanyl, which, by the way, as you heard, the way fentanyl kills you is it stops your heart and then you stop breathing. Presence of cutting agents and no other contributors, no other drugs.

Now, before I move on -- and, by the way, when we talk about -- we talked about those metabolites, and I read off those dates to you. Just to make a point. Go back to the chart of the sales. This matches Dr. Platt's testimony. This is the fentanyl and the metabolites at work.

Now, I want to be clear for the record and for your benefit. The burden of proof in this case starts with us, stays with us and ends with us. I said to you just now, Dr. Platt's testimony is not rebutted. There is no obligation by the defense to do a thing. They don't have to put on evidence, they don't have to put on witnesses. It is our burden, and we embrace that.

But the point is, you didn't receive any evidence to rebut the proof that we have offered to you. Had you received it, you might consider it and decide whether we have met our burden. But the record before you is the evidence provided by Dr. Platt that the other drugs had nothing to do with the death. That's the record.

Finally, we have to show you that the defendant knew he distributed a controlled substance. He knows it's a drug and the drug is controlled. We don't have to prove that he knows it's on the substances schedule. That's not our burden. He knows it's a drug and separately that drug is on the schedule.

Every drug that you've heard about is on the

schedules. We talked about this. Fentanyl is a Schedule II substance. You heard about that from Special Agent Klinge and from Special Agent Logan. Oxycodone, controlled substance. Percocet is just a brand name for oxycodone, a nickname among drug traffickers, but it's the same thing. M30 pills can only be one of two things, fentanyl or oxycodone/Percocet. They are all controlled.

We have proven to you that he knew he was selling fentanyl, but even if some of you think maybe it was real Percocet, does not matter. Does not matter. And if you hear otherwise from my colleague, that's not correct. It's a controlled substance. Period. All of it.

We have shown you with both direct and circumstantial evidence that the defendant knew he was selling fentanyl. And as Judge Robinson has explained, and as we talked about in voir dire, they are both relevant. You consider both equally. You decide how much weight to assign to them, but they are -- they are both proper forms of evidence. As we said, they are all scheduled.

How did he know he was selling fentanyl? First of all, you heard testimony that in February of 2019, an article was published. There was a screenshot of it. And as relevant here, that article put him on notice that M30 pills exist, that they are counterfeit and that they contain fentanyl. In his phone. He saw that.

Special Agent Klinge testified to you, based on his 16 years of experience with the DEA and with NCIS, based on his wiretaps, his searches, his CIs, his UC work, it is the common, accepted, understood form of fentanyl, that it's counterfeit blue M30 pill. Meth is shards. Heroin is brown tar. Cocaine is pearly white powder. Fentanyl is M30s.

Please play this.

(Video played.)

MR. ROTH: There they are on his Snapchat two weeks, a month before Christian dies. 99 fentanyl M30 pills. Now, in fairness, we never tested these pills, but I'm arguing to you that you can infer that these are M30 pills.

There he is dealing them with the distinctive Walgreens baggy that you can see him holding. That's his hand handing two pills to somebody in the car. There he is in his account -- or pardon me, corroborating this is him in his Snapchat account.

And let's talk about these, these are on his phone. That's important, because let's go look at the communications on his phone sent to and from Nameer Atta on the phone with those photos on it, let's talk about what they say.

November 2019, Johnny Gym says, Can you hook me up? I need some percs. I'm going to go get a tattoo this weekend. It's going to hurt.

The defendant says, Yeah. My homie has got some

script percs. Differentiating script, prescription percs from Perc 30s. How many milligrams are they, Johnny asks him? And the response, the only prescription ones are the 10s. Everything else is fake. He knows 30-milligram pills are fake. He knows it. They are not script. They are fentanyl.

Here we go again. May of 2020, within days of Christian dying, Alyssa asks him, How much would seven percs be? He gives her a price, and what does he say? Trust me, the most trusted and most potent in Orange County and San Diego right now.

Ladies and gentlemen, an oxycodone pill made by the manufacturer has 30 milligrams of oxycodone in it, every single one. Why is it necessary to say to a buyer, my pills are both the most trusted and the most potent? Because he knows it's not 30 milligrams of oxycodone regularly, predictably. His fentanyl pills are powerful, they will get you high, but they are trusted. You're not going to die. Not from my pills. Trust me. I'm the most trusted and the most potent pills. I got you. It only makes sense because he knows he's talking about fake pills.

And, of course, you saw his communications with Salim from March of 2020. And Salim says to you, Your plug sucks. I've got one who has got M30s that are prescription. No fentanyl. Says it to him. I've got a source of these

M30s. These are real. They have no fentanyl.

What is his response? You're retarded. Shut the F up. Not percs, LOL. 2000 percent. They don't make real M30s with oxycodone.

From the phone, beyond the communications, he's marketing this stuff. And how is he marketing it? Blue diamond is a Perc 30. Pay attention to that, because once again, most trusted. Only relevant because he wants people not to be scared of buying them. You're not going to die from my percs, not from my fentanyl.

Updating his menu. He's in business. He sold out. He's going to re-up, though. Don't worry. He's got more for you.

Here, another menu. Note, these aren't Perc 30s. They are just percs. Not most trusted. Perc 30s are the ones that have to be trusted.

And, of course, another one from the phone. Once again, the blue M, so the diamond and the blue M, Perc 30s. And what does he say again? Most trusted in SD. If it's a Perc 30, he wants you to know you can trust it and you're not going to die. Because he knows nobody knows how much fentanyl is in any pill, so you got to persuade people that yours are going to be safe.

You see these same menus on the Snapchat account. This one is from April 20th. Christian would have seen that

one. They were Snapchat friends by then. Second one is from May 11th. Yet again, Perc 30s, most trusted, most trusted out, most trusted in SD. That's his tag line for his Perc 30s.

And, of course, don't forget what this is all about. Why sell drugs? Nobody is doing it out of the goodness of their heart. This is about money. This is what drug dealing is about.

Here are his messages with Ryyan, hitting up his own plug. We got the percs. Let's go get the percs. I've got bands for percs. There they are. I got money. I got cash. I'm the greatest of all time. I'm the GOAT. I'm the best dealer out there. I got the cash. That's what this is about. This is about stacks of money, nothing else. That's what Christian's life was about.

Christian, by the way, who saw this banner on his phone -- this is the defendant. Same font, same style, everything. Christian was a customer.

If we can please play this.

(Video played.)

MR. ROTH: Trap temple is booming. Money is coming in.

Drugs are a commodity. They're an illegal commodity. They're a dangerous commodity. You can infer all of that from your common sense. That's what he's trying to

do, make some money. So he knows what he's selling. He knows it's profitable, and he's selling it to get paid.

Here he is, just off Christian, just over five, six weeks, 1800 bucks. Easy money.

(Video played.)

MR. ROTH: Here again -- can we play these. I'm sorry.

(Video played.)

MR. ROTH: On the left. There goes Christian on the 19th.

Actually, can you play the one on the right.

(Video played.)

MR. ROTH: Where he goes off to his death, having been sold the final 12.

How did he know that these M30s were laced with fentanyl? He had notice. He knew that only 10-milligram Percocets were prescription. He said and believed there was no such thing as 30-milligram prescription oxycodone, Percocet, whatever.

He repeatedly advertised his pills as the most trusted and the most safest and you can trust me and you can buy my pills and everything is going to be fine, on Snapchat. He referred to them as most trusted and most potent. He made money, the GOAT made money off of this. He had sales to Christian of 57 pills, making 1800 bucks in a short period of

time. It's a drug, he knows what drug it is, and he knows it's fentanyl.

But, of course, even if you think that that chart that you saw, blue diamonds and Ms, is legitimate Percocet, real, 30-milligram oxycodones, he's guilty. He's guilty. It was fentanyl. He knew it was fentanyl. But even if he thought it might be Percocet, does not change the outcome.

Now, you're going to receive a verdict form at the end of this from Judge Robinson. This is what it looks like. You heard instructions on how to fill -- on how this works. The first thing we're going to ask you to do, find the defendant guilty of distribution of controlled substances. That's the first question before you.

Once you make that conclusion, go to the second question: Did the fentanyl cause Christian's death? And we would like for you to write that it did. That would be finding the defendant guilty as charged.

He was 26. His birthday had been the day prior. He died from drugs that man sold him. That man knew what he was doing, who cared about making money, whose pills resulted in death. He is guilty.

Thank you.

THE COURT: Thank you, Mr. Roth.

Mr. Cortez, do you wish to make a closing argument?

MR. CORTEZ: Absolutely. Thank you.

THE COURT: You're welcome.

MR. CORTEZ: You know, when I sat there listening to his closing argument, and it was an argument, and their nice PowerPoint, and all the editorial comment and additions to facts that you did not hear or see, I kind of forget the evidence for a second.

But then he said something, actually, he said a lot of things that brought me back to reality. And I'm going to try to go through them with you so that the same effect doesn't happen to you. I may forget a few things, and I will not address all the stuff that he got up here and told you about, so convincingly pointing at Mr. Atta. So think about what we would say.

But let me begin with an interesting comment. It has to do with His Honor's burden of proof. You will see the instructions; I will go through them with you.

He showed you a sensationalist video. Why -- they are going to ask you to use your common sense, because after I finish talking, he's going to come up and has another chance to address everything I told you, to undo what I've told you.

So think about your life experience and ask yourself, why would this advocate for me? Why would he do these things? And I'll tell you what woke me up. It reminded me about the burden of proof that he said in

passing, the burden is always on us. He never has any burden to show anything. Although, in that very context, he said, He hasn't offered any evidence to rebut what we said.

Well, that violates the very oath that you took in His Honor's instruction. We don't have to offer any evidence to contradict what they said in closing argument. Now, with that as an instruction, to wake us up to what's really happening here in motivation, here is the key to his closing argument, and he admitted it. You don't have to take it from me, the defense attorney.

He showed you that sensationalist video with nice music in the background about the temple and all that stuff, and my client's picture. Why does he show you that? Why does he have any need to show you that graphic stuff? It doesn't address May 20th. But most importantly, I will show you something that it doesn't address.

But he says, who knew what's in those pills? Who knew what's in those pills? Here is the problem, ladies and gentlemen of the jury. He's supposed to know. And not only that, he has an obligation to know. And even more than that, even further than that, he has an obligation to prove it to you to an extremely high level. We gave it a name, beyond a reasonable doubt.

We use that in law. We try to explain to juries what it really means, and I don't think we ever succeed.

What it really means, it's not -- think about clear and convincing. Clear and convincing, think about that, because that level is lower than reasonable doubt. Clear and convincing is precisely what those two words mean. It is very clear for a person of reason and intellect using common sense, and it's convincing. There is no lingering reasonable doubt.

Under that standard, they are supposed to prove to you what is in those pills. And they are also supposed to use something else that my colleague characterized, and I'll use another phrase that he used throughout, twice actually in his closing. It's very interesting.

He's talking about the first responders. We're not talking about first responders not having provided reasonable, medical, professional care. That's not the issue. The issue -- the issue is how has the government's evidence come to you and what does it say? Okay.

He used the phrase twice, dismissively, red herrings. Let's talk about red herrings, since he brought it up.

Thank God we have some real proof here for you to see. Their own proof.

When you go into the deliberating room, in that room, after Judge Robinson gives you the binding law, and one of those pieces of law is Jury Instruction No. 9. I won't

put it up on the PowerPoint. I'll read it to you. And you will have it in there to read.

And the second sentence of this jury instruction, it's enlightening about their motive. Why did they show that video? Why do they show the photographs of Mr. Atta, several photographs of Mr. Atta?

The defendant is not on trial for any conduct or offense not charged in the indictment. Think about that for a while. Not charged in the indictment.

So let's look at -- to help us, because we're trying to go through the evidence here and the law. What is in the indictment, you might ask. I asked myself, what's in the indictment?

His Honor told you at the beginning. Let's do it again and see what happened here, how far we strayed from the actual evidence and the facts. Remember in our voir dire, remember in our opening, I asked you to hold out, don't make up your minds, don't decide on emotions. That's what those photographs and the videos and all that stuff, all the sales, all the prices, the summaries by the agents. Oh, you see, that's the metabolites.

They can't even prove that any of those 57 pills, not one of those 57 pills they summarized in a nice chart with little graphics, and they explained what a GIF is and a little this and there is a diamond, there is a bag of cash,

there is all this; how graphic. Ask yourselves, Why? Why are they doing that?

Well, let's see if it helps us with the charge in the indictment. And he'll come up here after I sit down and try to weave some more.

Here is what it really says. On or about May 20, 2020, that's the day before, remember, when those 12 Percocet tablets they say were sold by Mr. Atta to Mr. Reed, 12 Percocet tablets. And as I keep reading -- before I keep going, remember what the good case agent admitted.

My last question on cross-examination of him was, my cross-examination was not that lengthy at all. Agent Logan, you were not able to find any of those 12 Percocet tablets, were you, sir? No, we weren't. No, we weren't. No, we weren't.

Is that important, or is that a red herring by a defense attorney that may be too polished? Well, I'll bring you back to his own phrase. Well, who knew what's in them? Who knew what's in those 12 Percocet tablets?

Well, now, who knows what happened to them. Whether someone knows what happened to them was not proved to you. I didn't hear any evidence as to it. That's why I asked the question, Well, sir, you testified for over an hour about all this nice stuff.

Let's see, again, what the indictment really

continues to say. Within the Southern District of California, the defendant, Nameer Atta, did knowingly and intentionally -- knowingly and intentionally distribute a mixture and substance containing a detectable amount of -- and then there is a fancy chemical word you heard before from Dr. Platt and others -- and with metabolites, propanamide. I can't pronounce it properly. I'm sorry. That's why I asked Dr. Platt to help us -- commonly known as fentanyl, a Schedule II controlled substance, and then it says which resulted in the death of another person, to wit, C.M.R., Mr. Reed.

So the indictment specifically charges that on May 20, Mr. Atta sold Mr. Reed fentanyl. Without putting some nice language and explanations and red herrings, fentanyl. And why is that important?

I want to show you. I'm not going to tell you or argue. He also -- the government also tried to tell you, and they told you that Dr. Platt was credible. Look at all his education. We never questioned his education. He was credible. I completely agree. I couldn't agree more.

Remember my opening statement, members of the jury. Remember who mentioned metabolites first. They said drugs. We said metabolites. Why is that important now? Well, there is a piece of evidence, it's evidence that you will go into that room and take.

I ask you, I beg you, based on your oath, and I approach you because you have to look at it. I want you to look at this exhibit. And I'm asking you, begging you to read it very closely, very, very closely.

This is Dr. Platt's autopsy report. And what is important about Dr. Platt's autopsy report, look at the sticker. This blue sticker in the lower right corner is not yellow. It doesn't say "Government Exhibit." It does not say "Government Exhibit." It says "Defendant's Exhibit D-1." The only one we introduced.

So I ask you, in determining red herrings, in determining motives, why does the defense have to introduce the autopsy report? Well, it's very obvious to you, you're not naive. You don't have to have a law degree. They didn't introduce it. Really?

The indictment requires them to prove that this poor man died of the very -- let's say object -- I can't find my pen. There it is. See if I can -- this is how it makes sense to me. The indictment in the last part says, pretty much, the thing itself, the thing itself that Mr. Atta sold to Mr. Reed on May 20, 2020, that thing itself, whatever it was -- because they don't know -- killed him. Remember, that simple thing, that thing that was sold on May 20th killed Mr. Reed tragically.

So do we know what that thing was? Because they

have a burden to show beyond a reasonable doubt, they have to prove to you what that thing was. They can't argue it away. They can't ask you to then look at the defense as red herrings, characterizing every little point we bring up as a red herring.

Like, for instance, do you remember how it was awkward when I started cross-examining the case agent? Let me set the scene, and I show you this photograph. It's in evidence. You saw it. Okay.

Before I went to this question, I was careful. Officer, you're the case agent; right? Yes.

You were coordinating everyone? Yes.

Everyone was gathering evidence? Yes.

Interviewing witnesses? Yes.

And you were coordinating everyone; right? Oh, yes.

And they introduced this picture, not me. That has Government's 88. Why is that important? Is that another red herring? Oh, and they also showed you a picture of the bottle and the contents, or some bottle. Some bottle. Why is this important? Is this a red herring by a defense attorney that is grasping for straws?

Well, it's important because it has to do with the accuracy of the gathering of evidence. But it's also important to motives. Remember how I struggled on cross-examination. Objection. Hearsay. Well, I had to do

it two or three times, and it became a little awkward. It became almost a little confusing. What is he trying to do?

And finally, finally after two or three questions, after it was awkward and objections, oh, okay, there were other pills in there, but they were all medication. Other pills, various other pills. Remember. I read it.

Why is that important? It has to do with how they are taking evidence and they are trying to stretch it. On direct examination, the agent didn't say there were various other medications in that bottle. He said there was only one type, the one prescribed, the one on the prescription label. But that wasn't true. Okay.

So why am I doing that? To sidetrack you here, to not look at the real facts? No. It has to do with everything they are showing you, and it has to do with who put in the autopsy, and it has to do with how credible is Dr. Platt? He's extremely credible.

And it has to do with the questions I asked him. And, Dr. Platt, what are metabolites? That's the first time anyone went into the concept of metabolites. And why is it important? It is evidence. These are facts. Metabolites are something that the body processes. And when you take fentanyl, a legal amount, it breaks down, because it doesn't kill you. Your body is metabolizing. You're still alive. Okay.

But either way, if you take oxycodone, Percocets, you're going to have it in the system. Dr. Platt, remember, we read off, we read off together the series of medications they found as a result of the autopsy and the toxicology report. Remember that? It's not minor. It's not irrelevant. It's critical. It goes to the very heart of the case. What killed Mr. Reed? What was that substance that killed Mr. Reed? It was fentanyl, undoubtedly.

Okay. And I ask, Well, is there any oxycodone that you found? No. Percocet is the brand name, one of the brand names for oxycodone. Oxycodone is an opiate. We heard that from all the agents. Why would that be important? Is that some other controlled substance, that it's a loophole that we try to find it? Again, they argued it just before me. No, members of the jury.

Here is the real legal issue. Look at the Judge's Jury Instruction No. 10. They spent a great deal of time on the first and second element. Though on the first, they admitted, it has to be knowingly distributed. And then they argue, but you see, he's saying these are the safest and this is the temple and all this stuff. These are trustworthy. That proves he knew that they had fentanyl.

It does not prove anything. It does not prove anything. It's an argument. But more importantly, those 12 Percocet tablets they say contained fentanyl, they never

found them, so we don't know what was in them; just like the ones in the video. But that's critical, because it goes to the very substance that was found in Mr. Reed's body that caused his death. It goes to the very heart of the case.

And you know what part of Jury Instruction No. 10 will tell you that? Not me. Not the prosecutor. Look at the third element. I beg you to look at the third element. I'm not going to bother to read it to you. Read it in there and notice what it requires the government to prove, not only 1 or 2, but No. 3 is critical because it's not some other controlled substances.

And why is that central? Because Element No. 3 goes with the autopsy report. Only what's in this autopsy report and the toxicology report is what was found in Mr. Read's body. No oxycodone at all. What would that mean? We don't know. That's another question. We don't have to prove what happened. They have to prove what happened. And they didn't prove that. And they admitted it.

We don't know -- who knows what was in those pills. Well, in this proceeding, we're supposed to know. We don't just guess or argue it away. So are all these things that I'm saying red herrings? Am I trying to distract you from the real evidence?

Well, the real evidence, as I said in my opening statement, it's certainly, certainly not Government

Exhibit 73. I wanted to see a government exhibit on the autopsy report, but sadly, we don't have that. It's our exhibit. Our sole, humble little exhibit.

But we have this. You will have this in the deliberating room. Look at it.

MR. ROTH: I don't mean to interrupt counsel. It's not of record, but we did play that in our closing.

MR. CORTEZ: I got it. You see this is two photographs, two separate photographs. Why would they show you these photographs?

Because look at how Mr. Atta looks. If one of us has had too many drinks and they take a picture of us, that's how we're going to look. And if we take a selfie of us, and we've have too many drinks, that how we're going to look. Or if someone is going to be taking other things, that's what we're going to look like. And then the one on the left, there is a baggy. Very convenient. The agent told you that's a Wal-Mart -- you can read it.

Why are they showing you this and they are arguing this hand holding that is Mr. Atta. Did they prove that, or did they argue it?

Those are the things that you're here to decide. Because there is another jury instruction that the Judge, Judge Robinson will tell you. It is not conjecture. And Instruction No. 1 is one of the keys. They are all key

instructions, but they are all helpful.

Instruction No. 1, second paragraph, you read it, please, when you get in the deliberation room. It is your duty to weigh and evaluate all evidence -- evidence; not argument -- in the case, and in the process, decide the facts. This is about facts. This is about evidence. This is about science.

In our opening statement, we shared with you how those were going to be the central focus of this whole trial. You have evidence before you right now that tells you what did not -- did not cause Mr. Reed's tragic death. Judge Robinson told you, you use the evidence or the lack of evidence. Remember that. He just told you.

The lack of evidence, what does the lack of evidence in this autopsy report show? No proof that either those 12 alleged Percocet tablets, now argued always contained fentanyl, well, neither the DEA agent nor the case agent, Agent Logan, said anything about that.

You have fentanyl in a variety of substances, but there is a lot of Percocets out there. And look how many he sold. Well, if he sold him 57 in a period of a month and a half. I ask you a simple, commonsense question: If they are so lethal, why did he take them for almost a month and a half? Because that's the argument they are making.

But even more to the point in this trial, do we

know, is there evidence, facts, do we know that those 12 tablets, whatever was in them, because we don't know what is in these things, who knows, do we know that those were taken by Mr. Reed or whether he did something else with them? We don't know that.

Those are reasonable questions that any person should have, and those are questions that the government's proof must, must prove. Prove, not argue. And if we, indeed, don't have a burden here, then why am I with a burden to show the autopsy, the actual source of the actual facts, the actual evidence, the actual chemicals found by Dr. Platt?

Dr. Platt is an absolutely credible witness. They could have easily asked him a bunch of questions. Dr. Platt, did you find -- in your facts that you reviewed, did you find any evidence at all, any evidence at all -- listen to me, because this is a huge gap in their case. Did you find any evidence at all in determining cause of death, any actual fentanyl? Besides in the body you mean? Yeah. No.

Did Agent Logan prove to you that he found actual fentanyl in Mr. Atta's possession? No. All the graphs they show, the Snapchat, the summaries, the little icons and everything, did they say, Hey, I have some Percocet tablets laced with fentanyl. Very dangerous, so you must be careful not to take too much of it?

No. There is no evidence from the government that

Mr. Atta at any point in time was distributing fentanyl or a controlled substance that he knew, that he knew, they never proved that, was contained in that substance.

Like, I love that analogy by Agent Logan, the analogy of the meatloaf. That the binders, you know, the eggs and the bread crumbs. Yes, if you have oxycodone and you have other binding agents, you're going to find oxycodone and the other agents, which no one found here.

If there is some tablet, something associated with Mr. Atta before May 20 that has fentanyl, no matter how much or how little, we've got to prove to the jury that he is definitely associated with fentanyl. There is nothing.

One of the lists says no fentanyl. Well, why does that say that? He argues that it's a warning. Hey, these are the safest. They won't kill you. That doesn't say that. It does not say that.

So without taking too much more of your time, it has been a long two days for me. I will not have another chance to talk with you. And this case began about facts. This case began with an indictment that was read by the Court. This case began with an indictment that charges a specific crime and a specific criminal offense with a specific relationship.

That relationship, that relationship in this indictment, is that the object that they say Mr. Atta sold

Mr. Reed on May 20, Mr. Reed took into his body -- we don't have any proof of that -- and that after taking that object -- or in this case, 12 tablets, not one -- that he took that object, those 12 tablets, he ingested them and then he died. That's what this requires them to prove. And Dr. Platt told you that never happened. That's why we had to introduce the autopsy report.

When the prosecutor is finished saying all the things he's going to say, please remember, members of the jury how you began this case, how you started. You started with a presumption of innocence. Well, what does that mean? What is a daily-life application? How are we non-legally trained people supposed to apply that? How do I apply the presumption of innocence?

It's actually very easy. I'm going to try to share what I think it says. When you began this trial, when you were sworn in and the evidence began to come in, you were not sitting there (indicating). I'm going to ask you to get inside your mind and your imagination and put yourself right here. Because you begun, and still right now, before you go into that room, you're right here. You have to presume him innocent. You have to presume him innocent.

And the word is until and unless. Until and unless they prove beyond a reasonable doubt facts, chain of custody, leading facts to the next in an orderly fashion, not having

gaps and no explanations, no arguments.

I ask you to remember that because you have my client's life in your hands.

Thank you.

THE COURT: Thank you, Mr. Cortez.

Government's rebuttal.

MR. ROTH: Thank you, Your Honor.

I like Mr. Cortez. He's a colleague and a friend, but his indignation about how the evidence came in is pointless and immaterial.

We all have a role to play in this room. You, the jury, are the judges of the facts. Ms. Forrest and I are advocates on behalf of the United States. Mr. Cortez is here to advocate for his client. And the judge is the arbiter of the law.

All you have to know is that the evidence came in as allowed by the judge who administers the law, and you received it. In some instances, you didn't receive it. In many instances, you did. But you saw the process by which foundation was laid, relevance was shown, authenticity was shown and you received the exhibits. That's it.

So Mr. Cortez can wave the indictment around all he wants. It doesn't mean anything. If he were the prosecutor and wanted to prove the case by limiting himself to evidence on what happened on one day, in one year two and a half years

ago, that's his choice. We put on the case that we have to prove, and we gave you the evidence that we were allowed by law, which is embodied by His Honor, and that's what is in front of you.

MR. CORTEZ: Objection. That misstates the law.

THE COURT: Overruled. The evidence that was allowed in was evidence that was permissible under the rules of evidence.

Please continue.

MR. ROTH: And your duty is to decide what the value of the evidence is, to afford it the weight that you believe it deserves to draw inferences that in your collective judgment are appropriate to draw. That's it. That's it.

To that end, ladies and gentlemen, we precisely and powerfully, I submit to you, showed you how it all links up. The fact of the ledger, it goes to the fact that the defendant didn't distribute M30 fentanyl by accident. He wanted to. It was profitable. We showed you that he knew what was in those pills because he had notice of it because he had conversations about it over time.

Because he had repeated transactions and he kept making money off of it, and how do you know what you're selling is good? Because people keep coming back for it; right. That's the power of the evidence, and it's for you to weigh.

Mr. Cortez also made much of the notion that the defense had to introduce the autopsy report. That's nonsense. We have our burden. It stays with us. We're the only party in the room that has to prove anything to you. But he could admit the autopsy report or not. That's his decision. That's a strategy call by a lawyer. Nothing more.

Why didn't we show it to you? We put the doctor on the stand, gave you his testimony. Take it or leave it. It's your call. Credit it as much credit as you believe it deserves and make whatever findings you believe are proper based on his testimony.

Mr. Cortez wants you to see the report to assess his testimony. You can do that. There is nothing wrong with that. But this idea that we forced him in a corner and we shifted the burden to somehow require him to put in an exhibit, that's ridiculous. He chose to put in the exhibit. That's it.

And by the way, since it's in front of you and he urges you to read it, why don't you start with Page 1 where the opinion is a death by acute fentanyl intoxication. And then go to the next page, where it talks about how the victim is a healthy, 26-year-old male with no issues in the body.

The autopsy report, which supported the doctor's opinion that this was a fentanyl overdose, somehow became evidence contradicting the government's case. I don't

understand that, but you're the jury, you'll weigh the evidence.

There was also this complaint that the fentanyl pills were never recovered. Why do you think that is? This is a case in which the evidence has proven to you that the fentanyl pills were sold to Christian, that Christian died from taking them.

Why weren't they recovered? What was Special Agent Logan supposed to do, suck out his stomach acid and reconstitute a fentanyl pill to show it at trial?

MR. CORTEZ: Objection. That misstates the actual evidence.

THE COURT: Overruled.

MR. CORTEZ: Okay.

MR. ROTH: Where were the fentanyl pills? Draw the obvious inference, ladies and gentlemen. He died from them.

Finally, I want to close with showing you the reasonable doubt instruction, which I think is on the screen in front of you. It's doubt based on reason and common sense.

It's not doubt based on theatrics. It's not doubt based on innuendo. It's not doubt based on misleading, where were the pills and Dr. Platt and his report. There is something wrong with the evidence, and we can put it in a sentence. That's doubt based on reason and common sense.

And here there is none. You have overwhelming evidence that can't be disputed. You barely heard them put up a fight about it. Christian's phone. Christian's Snapchat. Christian's Venmo. The defendant's phone. The defendant's Snapchat. The defendant's Venmo. It all syncs up. It's one inescapable conclusion. He's a drug dealer, who sells fentanyl and sold it to Christian and Christian died from it. That's it. He's guilty.

Thank you.

THE COURT: Thank you, Mr. Roth.

Ladies and gentlemen, a few concluding instructions, and, again, you'll have copies of these instructions along with the ones that I read to you earlier.

When you begin your deliberations, elect one member of the jury as your foreperson who will preside over the deliberations and speak for you here in court. You will then discuss the case with your fellow jurors to reach agreement, if you can do so. Your verdict, whether guilty or not guilty, must be unanimous.

Each of you must decide the case for yourself. But you should do so only after you have considered all the evidence, discussed it fully with the other jurors and listened to the views of your fellow jurors.

Do not be afraid to change your opinion if the discussion persuades you that you should, but do not come to

a decision simply because other jurors think it is right. It is important that you attempt to reach a unanimous verdict, but, of course, only if each of you can do so after having made your own conscientious decision. Do not change an honest belief about the weight and effect of the evidence simply to reach a verdict.

Perform these duties fairly and impartially. You should also not be influenced by any person's race, color, religious beliefs, national ancestry, sexual orientation, gender identity, gender or economic circumstances.

Also, do not allow yourself to be influenced by personal likes or dislikes, sympathy, prejudice, fear, public opinion or biases, including unconscious biases. Unconscious biases are stereotypes, attitudes or preferences that people may consciously reject, but may be expressed without conscious awareness, control or intention.

It is your duty as jurors to consult with one another and to deliberate with one another with a view toward reaching an agreement, if you can do so. During your deliberations, you should not hesitate to reexamine your own views and change your opinion if you become persuaded that it is wrong.

Because you must base your verdict only on the evidence received in the case and on these instructions, I remind you that you must not be exposed to any other

information about the case or to the issues it involves.

Except for discussing the case with your fellow jurors during your deliberations, do not communicate with anyone in any way and do not let anyone else communicate with you in any way about the merits of the case or anything to do with it.

This restriction includes discussing the case in person, in writing, by phone, tablet, computer or any other means, via e-mail, text messaging or any Internet chat room, blog, website, or any other forms of social media. This restriction applies to communicating with your family members, your employer, the media or press, and the people involved in the trial.

If you are asked or approached in any way about your jury service or anything about this case, you must respond that you have been ordered not to discuss the matter and to report the contact to the Court.

Do not read, watch or listen to any news or media accounts or commentary about the case or anything to do with it. Do not do any research, such as consulting dictionaries, searching the Internet or using other reference materials, and do not make any investigation or in any other way try to learn about the case on your own.

The law requires these restrictions to ensure the parties have a fair trial based on the same evidence that

each party has had an opportunity to address. A juror who violates these restrictions jeopardizes the fairness of these proceedings and a mistrial could result that would require the entire trial process to start over. If any juror is exposed to any outside information, please notify the Court immediately.

Some of you have taken notes during the trial. Whether or not you took notes, you should rely on your own memory of what was said. Notes are only to assist your memory. You should not be overly influenced by your notes or those of your fellow jurors.

The punishment provided by law for this crime is for the Court to decide. You may not consider punishment in deciding whether the government has proved its case against the defendant beyond a reasonable doubt.

A verdict form has been prepared for you. After you have reached a unanimous agreement on a verdict, your foreperson should complete the verdict form according to your deliberations, sign and date it and advise the bailiff that you are ready to return to the courtroom.

If it becomes necessary during your deliberations to communicate with me, you may send a note through the bailiff, signed by any one or more of you. No member of the jury should ever attempt to communicate with me except by a signed writing, and I will respond to the jury concerning the case

only in writing or here in open court.

If you send out a question, I will consult with the lawyers before answering it, which may take some time. You may continue your deliberations while waiting for the answer to any question.

Remember that you are not to tell anyone, including me, how the jury stands numerically or otherwise on any question submitted to you, including the question of the guilt of the defendant until after you have reached a unanimous verdict or have been discharged.

Ladies and gentlemen, that concludes the instructions that will govern your deliberations. The last two instructions made reference to a bailiff. I actually have two bailiffs to assist you in this case. And at this time, I will ask Ms. Ortiz to swear our two bailiffs.

THE CLERK: Please stand.

(Bailiffs sworn, 2:30 p.m.)

THE COURT: Okay. Ladies and gentlemen, the case has now been officially submitted to you for your deliberations. I would ask you at this time to retire to the jury room to begin your deliberations.

The bailiffs will escort you into the room and show you around and get you oriented and provide you with any additional materials, pens, paper, whatever you need during the course of your deliberations.

So thank you for your time and attention, and please follow the bailiffs into the jury deliberation room.

(Jury deliberations, 2:31 p.m.)

THE COURT: Okay. We are outside the presence of the jury. All counsel are present. Mr. Atta is present.

I would ask the parties to confirm with Ms. Ortiz what exhibits have been received into evidence and ensure that only those exhibits that have been received are submitted to the jury for their consideration.

There was only one defense exhibit. Is that going back in paper form, or has that been added to the thumb drive that's going back?

MR. CORTEZ: It was going to be added to the thumb drive.

MS. DOUGLAS: It has.

THE COURT: Okay. So we're still in the pandemic protocol where the physical exhibits are not going back.

MR. CORTEZ: Right.

THE COURT: But they have access to the thumb drive. There is a screen where they can go through the exhibits in the jury room during their deliberations.

Mr. Cortez, did you confirm that only those exhibits admitted into evidence are on the thumb drive?

MR. CORTEZ: No. It's being finalized as we speak.

THE COURT: Okay. I would ask you to do so to ensure that only those exhibits that are in evidence are on the thumb drive.

MR. ROTH: Your Honor, we will not be including the stipulation which was filed and included because the only portion of it was the testimony of Austin Ritter that would have been offered, which per the parties we simply read into the record.

THE COURT: Okay. Mr. Cortez, do you agree that the stipulation should not go back to the jury for their deliberations, because the only part that was read to the jury is in the record in the form of oral recitation?

MR. CORTEZ: I agree.

THE COURT: Okay.

MR. CORTEZ: I have one last thing.

THE COURT: Yes.

MR. CORTEZ: I want to make another motion for mistrial. Because in the middle of the government's closing argument, the first one, he actually -- and I referred to this in my closing. He actually said to the jury that we have not offered any evidence to rebut, when he said it, our evidence. Okay.

Clearly, he said that. I really believe that's a shifting of the burden, and it affects the entire process. And I renew my motion for mistrial.

THE COURT: Okay. I took that comment in the context of arguing that the government's evidence was uncontested. I believe it may have been an inartful way of phrasing that particular argument, but I do note that Mr. Roth came back and clarified that he was not shifting the burden, that the burden remained with the government, and then recycled that argument in a proper format to argue that the testimony was uncontested and that there was no burden on the part of the defense.

So I would respectfully deny the motion for a mistrial.

MR. CORTEZ: I understand.

THE COURT: Okay.

MR. CORTEZ: Your clerk has my cell number.

THE COURT: Okay. I would ask that all the parties be within a ten-minute call --

MR. CORTEZ: Okay.

THE COURT: -- of the courthouse during the jury deliberations.

Do the parties waive their presence -- if the jury decide that they are going to retire for the evening and come back tomorrow, do you waive your presence at the end of the day and the beginning of the day tomorrow?

MR. CORTEZ: Yes, we do.

MR. ROTH: Yes, Your Honor.

THE COURT: Okay. I'd like to conclude today's session, before you have an opportunity to consult about the exhibits, with a comment on the performance of both sides in this case.

I appreciate the professionalism by both sides. I think this case was very well presented. It's a difficult case. There are some serious consequences to the matters that are under the jury's consideration. But I do appreciate the professionalism on both sides, so thank you.

MR. CORTEZ: Thank you.

MR. ROTH: Thank you, Your Honor.

MS. FORREST: Thank you.

THE COURT: Okay. We are in recess.

(Recess, 2:35 p.m. to 4:28 p.m.)

THE COURT: Okay. We are back on the record. We are outside the presence of the jury. All counsel are present. Mr. Atta is present.

You should have on your table two different jury notes that were submitted. The first one is the jury question: The verdict form does not contain the word "knowingly" while Instruction 10 and 11 include it. Please clarify. Which takes precedence?

The other one is, Can the verdict form be reworded or is it set?

You have one of my proposed answers. I was working

on the other one, and then all counsel arrived.

So the option that I give the parties -- and I'm more than happy to hear your thoughts on this as well -- is that the verdict form is not intended to reflect the elements of the crime charged; rather, it is merely intended to document the jury's decision after your full consideration of the jury instructions and the facts of the case.

MR. CORTEZ: I agree with that.

THE COURT: Okay. Government's position?

MR. ROTH: I agree with it, Your Honor. Or if Your Honor has an alternative that the Court would like to propose.

THE COURT: The other alternative, and it was merely a word manipulation issue for me, because I had the "guilty"/"not guilty," "did" or "did not" under the line, is to amend the verdict form to track the specific language of the indictment. That seems to be their concern.

MR. CORTEZ: Yeah, no. Because I think that they are going to get a little more confused. Jury -- Jury Instructions 10 and 11 cover it, and they should rely upon it. And it follows my part of the argument in closing, especially Instruction 10.

MR. ROTH: I think a whole new verdict form may lead to more confusion than less.

THE COURT: Very well. I was so inclined. And I

appreciate that. What I would propose to do is just submit this in written format to the jurors with a time on it, and make that part of the record.

Is that okay with the defense?

MR. CORTEZ: When you say "this," are you talking --

THE COURT: It's the sheet that you have without anything, other than my -- I'll probably use my stamp.

MR. CORTEZ: We agree with that as well.

THE COURT: Okay. Could I have one of your versions. Mine has 9.5.

Okay. The time is 4:30. And I will ask the bailiffs to submit that response. And the response will be made part of the record as well.

MR. CORTEZ: Thank you.

THE COURT: Okay.

MR. ROTH: Your Honor, if we don't hear from the Court by 5:05, should we just assume, or will the Court contact us? I just don't want to leave.

THE COURT: So when they leave for the day, Ms. Ortiz will let the parties know that they have recessed for the day. I am going to let them decide when they want to come back, unless it's unreasonable. If they want to come back at noon, I'm going to suggest something earlier in the day. But I will let the parties know.

MR. CORTEZ: Thank you.

MR. ROTH: Thank you, Judge.

THE COURT: You're welcome.

(Recess, 4:31 p.m. to 5:06 p.m.)

(Jury present, 5:06 p.m.)

THE COURT: Okay. We are back on the record. All of our jurors are present. All counsel are present. Mr. Atta is present.

Ladies and gentlemen, I'm informed that you have reached a verdict; is that correct?

THE FOREPERSON: Yes, Your Honor.

THE COURT: And could the foreperson please hand the verdict form to the bailiff.

Okay. Mr. Atta, could you please stand for the reading of the verdict.

MR. CORTEZ: May I stand, too?

THE COURT: Yes.

THE CLERK: United States District Court, Southern District of California, United States of America, Plaintiff, versus Nameer Mohammad Atta, Defendant, Case No. 21-cr-1289-TWR.

Verdict: We, the jury, find the defendant guilty of distribution of fentanyl or some other federally controlled substance, as charged in the indictment.

If you found guilty above, distribution did result in the death of C.M.R., another person.

Dated September 27th, 2022, signed by the foreperson, Austin Mroczek.

THE COURT: Okay. Mr. Cortez, do you wish to have the jury polled?

MR. CORTEZ: Yes, please.

THE COURT: Ms. Ortiz, would you please poll the jury.

THE CLERK: Sean Kaufman, is this your verdict as presented and read?

JUROR NO. 1: Yes.

THE CLERK: Elaine Wilson, is your verdict as presented and read?

JUROR NO. 2: Yes.

THE CLERK: Jordan Black, is this your verdict as presented and read?

JUROR NO. 3: Yes.

THE CLERK: Melanie Ramos, is this your verdict as presented and read?

JUROR NO. 4: Yes.

THE CLERK: Austin Mroczek, is this your verdict as presented and read?

THE FOREPERSON: Yes.

THE CLERK: Richard Massey, is this your verdict as presented and read?

JUROR NO. 6: Yes.

THE CLERK: Madisyn Berg, is this your verdict as presented and read?

JUROR NO. 7: Yes.

THE CLERK: Noe Vizcarra, is this your verdict as presented and read?

JUROR NO. 8: Yes.

THE CLERK: Jesse Watford, is this your verdict as presented and read?

JUROR NO. 9: Yes.

THE CLERK: Amy Messenger Alexander, is this your verdict as presented and read?

JUROR NO. 10: Yes.

THE CLERK: Jessica Occhialini, is your verdict as presented and read?

JUROR NO. 11: Yes.

THE CLERK: Tarang Patel, is this your verdict as presented and read?

JUROR NO. 12: Yes.

THE CLERK: Thank you.

THE COURT: Okay. The jury has been polled. The verdict will be made part of the record in this case.

You may have seat. Thank you.

MR. CORTEZ: Thank you.

THE COURT: Ladies and gentlemen, I'm going to make my remarks brief, but I wanted to finish where we started

yesterday, and that is thanking each and every one of you for your willingness to participate in this very important civic duty.

As I hope you now understand, randomly selecting people from the community to stand as judges of the facts in a criminal case, such as this one, is a very important task, and our judicial system is envied by many, many countries in the world because we have citizens, such as yourself, who are willing to serve in the capacity as jurors.

So on behalf of my court staff, on behalf of all of the federal judges here in this Southern District of California, I want to sincerely thank you for your time and attention.

I paid very close attention to you during the course of the presentation of the evidence, and each and every one of you gave it your full attention, as it deserved in this case. So thank you once again. I wish you all a very good evening.

You may leave your notebooks here in the courtroom. Ms. Ortiz will take your notes out and will shred them. No one will review them. And make sure that you remove any personal effects from the jury room prior to departing today.

As I told the other jurors who were not selected, if you would kindly place your juror badges in the receptacle as you go through security, we will recycle those.

The final thing that I would like to tell you, ladies and gentlemen, is oftentimes, staff or the attorneys or other individuals with an interest in the case may seek to speak with you outside the courtroom after you're dismissed. Whether or not you speak with those individuals is a matter entirely up to you.

I would give you one cautionary thought, though. If you do choose to speak with anyone, please be very candid and very truthful in any response you give, because interviews with jurors sometimes circle their way back and wind up on my desk in the form of an affidavit. So please be mindful of that possible fact if you choose to speak with any of the participants after you're discharged from your duties.

And, officially, you are now discharged from your duties. You may discuss the case with anyone, to include the parties, your spouse, your family members, your coworkers. The admonition I've been giving you is now lifted.

So thank you once again, and good evening.

(Jury discharged, 5:12 p.m.)

THE COURT: Okay. We are outside the presence of the jury, which has been dismissed now, so it's really no consequence at this juncture.

But, Ms. Ortiz, may we have a sentencing date, please.

THE CLERK: That will be January 13th, at 9:30 a.m.

THE COURT: Yes. With a PSR. I will order that a presentence report be prepared in this matter.

Does January the 13th work for you, Mr. Cortez?

MR. CORTEZ: Yes.

THE COURT: Does January the 13th work for the United States?

MR. ROTH: It does, Your Honor.

THE COURT: Okay. Is there any other matter that we need to address?

MR. CORTEZ: Yes. Would you extend the time for post-verdict motions to the time of sentencing?

THE COURT: Yes. Until two weeks before sentencing. So when your sentencing paperwork would ordinarily be due, a week in advance of that, so that the government has a week to respond to it.

MR. CORTEZ: Okay.

THE COURT: Okay.

MR. CORTEZ: One last question. We're -- I know we're swimming upstream. We're going to bring a Constitutional attack on the sentencing part of this statute.

When would you like to see that? At sentencing?

THE COURT: Okay. I'm looking at the date a little bit more closely. Given the briefing that I anticipate --

MR. CORTEZ: It's going to be extensive.

THE COURT: And we're right in the middle of the

holiday season for all the briefings, because two weeks out would be right around the New Year and right after.

MR. CORTEZ: Can we have a little more, because I can tell you, there is extensive briefing going to happen.

THE COURT: Okay. Let's push the sentencing to February.

MR. CORTEZ: Beginning.

THE CLERK: February 10th.

MR. CORTEZ: That's good.

THE COURT: Okay.

THE CLERK: 9:30 a.m.

THE COURT: Okay. Does February the 10th work for the United States?

MR. ROTH: Certainly, Your Honor.

THE COURT: Okay. Any briefing from the defense will be due four weeks before the sentencing date, which will be the 13th of January. The government will have two weeks to respond. And your response will be due by January the 27th. And then all of the sentencing-related documents will be filed in the ordinary course.

MR. CORTEZ: Thank you.

THE COURT: Okay.

MR. ROTH: Yes, Your Honor.

THE COURT: All right. Thank you very much.

We are in recess.

MR. ROTH: Thank you, Judge.

MS. FORREST: Thank you, Your Honor.

MR. CORTEZ: Your Honor, one unusual request.

THE COURT: Yes.

MR. CORTEZ: May my client hug his mom?

THE COURT: That's entirely up to the marshals. Mr. Cortez, he's in their custody.

(Proceedings concluded at 5:15 p.m.)

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C E R T I F I C A T I O N

I hereby certify that I am a duly appointed, qualified and acting official court reporter for the United States District Court; that the foregoing is a true and correct transcript of the proceedings had in the aforementioned cause; that said transcript is a true and correct transcription of my stenographic notes; and that the format used herein complies with the rules and requirements of the United States Judicial Conference.

DATED: October 25, 2022, at San Diego, California.

S/CAMERON P. KIRCHER
CAMERON P. KIRCHER